BY ORDER OF THE
SECRETARY OF THE AIR FORCE

AIR FORCE MANUAL 36-203

12 DECEMBER 2002
Incorporating Change 1 , 8 JUNE 2006

UNITES STATES AIR FORCES IN EUROPE
Supplement
19 JUNE 2012

Personnel

STAFFING CIVILIAN POSITIONS

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

ACCESSIBILITY: Publications and forms are available on the e-Publishing website at **www.e-Publishing.af.mil** for downloading or ordering.

RELEASABILITY: There are no releasability restrictions on this publication.

OPR: HQ USAF/DPPH — Certified by: HQ USAF/DPP (Maj General J. Speigel)

Supersedes: AFMAN 36-203, 1 April 2000 — Pages: 77

(USAFE)

OPR: USAFE/A1KKC — Certified by: USAFE/A1K (Monique F. Botting)

Supersedes: AFMAN36-203_ USAFESUP, 24 May 2005 — Pages:8

This manual implements AFPD 36-2, *Employment and Affirmative Action* and AFI 36-2024, *Staffing Civilian Positions.* It provides guidance and prescribes operational procedures for certain types of civil-ian staffing and placement programs and actions. It applies to employees, supervisors, civilian personnel flights (CPF), and other management officials of the Air Force (AF). It does not apply to Scientific and Professional positions, or positions in the Senior Executive Service (SES), except for **Chapter 6**, which is incorporated by reference in AFI 36-901, *Air Force Senior Executive Resources (PA).*

(USAFE) AFMAN 36-203, 12 December 2002, is supplemented as follows: This supplement prescribes USAFE Form 16, Local Applicant Questionnaire, outlines responsibilities of the Civilian Personnel Section (CPS), and gives instructions for determining an applicant's ordinarily resident status. This supplement applies to all United States Air Forces in Europe (USAFE) units. It does not apply to Air Force Reserve Command (AFRC) or Air National Guard (ANG) units. Refer recommended changes and questions about this publication to the Office of

Primary Responsibility (OPR) using the AF Form 847, Recommendation for Change of Publication. This update also outlines processes as they relate to foreign unique requirements, and USA Staffing. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with AFMAN 33-363, Management of Records and disposed of in accordance with the Air Force Records Disposition Schedule (RDS) located at: http://www.my.af.mil/afrims/afrims/afrims/rims.cfm.

SUMMARY OF CHANGES

This revision incorporates Interim Change IC 2006-1. This interim change eliminates separate eligibility in foreign areas for military spouses who marry subsequent to the PCS of the military sponsor (deletes paragraph 4.2.2). A bar (|) indicates revision from the previous edition.

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Chapter 1

AFFIRMATIVE EMPLOYMENT

1.1. Principles for Filling Positions. Positions may be filled from any of the following sources consistent with the priorities established herein and subject to the requirements of other pertinent Office of Personnel Management (OPM), Department of Defense (DoD), and AF procedures or special employment programs. AF installations must observe the requirements of the Federal Equal Employment Opportunity Recruitment Program (FEORP) when filling positions to include the following:

1.1.1. Inservice placement of current AF employees, including the career management program

1.1.2. Transfer or appointment of employees from other federal agencies

1.1.3. Reinstatement or reemployment of eligible former federal employees

1.1.4. Other appointments, including appointments from OPM/Delegated Examining Unit (DEU) registers.

1.2. Availability. The availability of eligible AF employees who could be considered through merit promotion or other inservice placement procedures does not prevent a decision to restructure a vacant position and fill it at a different grade level. Nor does the availability of merit promotion or other inservice candidates prevent a search outside AF for, and appointment of, qualified and available persons.

1.3. Considerations. Affirmative action goals may be taken into consideration in consonance with Merit System Principles, 5 USC, Section 2301.

1.4. Suitability of Candidates and Security Factors. Before finalizing a selection, the CPF makes sufficient written and/or oral inquiries of former employers, fellow workers, and other knowledgeable sources to evaluate the candidate's qualifications and suitability. It also initiates required security checks on the selected candidate in accordance with governing security regulations. The selecting supervisor appraises the candidate's general suitability before making a final selection.

1.4.1. **(Added-USAFE)** USAFE Form 16, **Local Applicant Questionnaire.** (T 036-27 R. 01.00, Air Force Records Disposition Schedule, applies) Local candidates must complete the USAFE Form 16 to obtain additional information required to make eligibility determinations under the North Atlantic Treaty Organization (NATO) Status of Forces Agreement (SOFA) with host countries before selections can be finalized. Based on provisions of the NATO SOFA, a person may not be a part of the "civilian component" if a citizen of the host country, or regardless of citizenship, if "ordinarily resident" in the host country. Those not eligible for the "civilian component" are only eligible for employment as "local labor" under employment conditions established for local national personnel (that is, pay, benefits, etc.). United States (US) laws require that pay and various other employment conditions of US citizens must be according to those laws, regardless of duty location. The only way to comply with both the SOFA and US law is not to employ US citizens who are not eligible to be a part of the "civilian component."

1.4.1.1. **(Added-USAFE)** In determining if a person is ordinarily resident in the host country; consider the primary reasons and motivation of why the person moved into the host country, and the circumstances under which the person remained. Use the guidance on the USAFE Form 16 to assist in this determination. CPFs may also seek advice from their local staff judge advocate. Each completed USAFE Form 16 should be forwarded to the Air Force Personnel Center Career Field Employment Division Overseas Team for assistance with determination during the employee pre-appointment phase.

1.4.1.2. **(Added-USAFE)** Management may choose to perform suitability determinations during the pre-selection process. If this does not occur, management is responsible for providing local CPS candidate information in order for the servicing specialist to perform suitability determinations.

1.5. Qualification Requirements.

1.5.1. Normally the OPM establishes or approves qualification requirements for positions in the competitive service. Qualification standards prescribe the minimum experience, training, education, and physical requirements, or otherwise specify required knowledge, skills, and abilities (KSAs) necessary for successful performance in the position. Local determination of physical ability or accommodation is used for all positions that do not require a medical examination, i.e., positions not covered by specific medical standards, physical requirements, or a medical evaluation program. Qualification standards will be uniformly applied for like positions and maintained as a record for OPM and AF evaluation and quality assessment.

1.5.2. The CPF establishes qualification requirements for AF positions in the excepted service, subject to any applicable restrictions and conditions, as prescribed in OPM directives, AF supplements, and by DoD and AF career programs. The OPM competitive service requirements for similar type positions are used as a guide for establishing standards for excepted service positions.

1.5.2.1. **(Added-USAFE)** For USAFE installations, AFPC is responsible for establishing qualification requirements.

1.5.3. When an employee is affected by reduction-in-force (RIF) or has become physically incapacitated for continuance in his or her present position, a waiver of qualifications or appropriate accomodation should be considered in accordance with prevailing rules and regulations. A waiver of qualifications or special accomodations should be agreed to by all parties, the CPF, supervisor, and, when proper, the medical officer before assignment to a vacancy.

1.5.3.1. **(Added-USAFE)** AFPC should be included in the qualification waiver process.

1.6. Referring and Selecting Candidates.

1.6.1. Because of the requirements to observe the priorities established by law, regulation and other higher authority outlined in this manual, the CPF, servicing center, and/or the career program determines the eligibility of candidates for consideration and identifies those to be referred.

1.6.2. When contacting eligibles for consideration, recruiting officials and selecting supervisors should provide complete information regarding duties, working conditions,

availability of local community services, and all other matters needed for the prospective employee(s) to make a decision.

1.6.2.1. Position descriptions will be presented accurately and without misrepresentation. Positions may not be described in such a way as to discourage interest or solicit declinations.

1.6.2.2. Selecting officials and supervisors may not make firm, tentative, or implied com-mitment to any candidate without first obtaining clearance from the CPF.

1.6.2.2.1. **(Added-USAFE)** AFPC should also be included in correspondence/ coordination prior to management making any type of employment commitment.

1.6.3. The authority for personnel management is usually delegated to the lowest practicable level of supervision. However, when training, employment, or promotion patterns in an organization indicate that the principle of equal employment opportunity may not have been fully observed, the commander may withdraw selection authority and assign it to higher level supervisor(s) pending the outcome of an inquiry.

1.7. Employee Requests for Position Change. The servicing CPF will determine when a need exists to accept an employee's request to be moved to a different position at the same or lower grade based on such factors as available skills in the work force, mission requirement, or planned staffing activities.

1.7.1. **(Added-USAFE)** This is normally accomplished with applicant applying via USAJOBS.

1.8. Prompt Release of Employees. An employee is not restricted from accepting a position offer from another AF activity or federal agency, or from accepting another position within an activity for which the employee is properly referred and selected. The supervisor releases an employee promptly to another position on the same installation, usually within 20 calendar days after receiving notice of the employee's selection. An extension of up to 10 days may be requested to train a replacement if the delay does not jeopardize the employee's transfer or movement to another position (see para **2.19**).

1.8.1. **(Added-USAFE)** Employees are not to be unnecessarily retained after acceptance of any other job offer.

1.8.2. **(Added-USAFE)** For acceptance of positions outside the local commuting area, release dates are to be negotiated between the gaining and losing supervisor in compliance with all pre-employment requirements. Releases should be accomplished in a reasonable timeframe.

1.9. Assisting the New Employee. The supervisor and the CPF have a joint responsibility for providing information and assistance to the new employee. An employee who is moved to a different geographical area should be given pertinent information about the new locale, such as information on housing, schools, transportation, local community services, etc. The CPF should develop procedures to provide help to the new employee moving from a different area.

1.10. Referral and Selection Priorities. **Table 2.3,** Referral and Selection Priorities, establishes the order of priorities that are observed when filling competitive service vacancies at continuing activities. They apply to excepted service position vacancies to the extent applicable. For this purpose, a vacancy does not exist when an occupied position is:

1.10.1. Reclassified because of a change in classification standards or to correct a classification error, provided the incumbent is to be retained in the position.

1.10.2. Canceled and a successor position is immediately established that is to be filled by the incumbent through an authorized personnel action.

1.11. Special Employment Programs. Air Force activities are expected to develop special employment programs designed to supplement the merit promotion and inservice placement programs. These programs purposefully seek to enhance employment opportunities in such areas as the employment of veterans, Federal Equal Opportunity Recruitment Program (FEORP), employment of persons with disabilities, student education employment program, and spe-cial programs for the disadvantaged. Many of these programs offer only temporary employment and may be used to the extent funds, facilities, and capability to provide supervision and training are available. Other programs offer, or lead to, permanent appointments. Current employees are usually available for many continuing positions identified for such special programs. The supervisor, in conjunction with the CPF, determines when internal candidates are considered and when these positions are filled from sources outside the AF. Judgment is used to provide equitable and balanced consideration of candidates from all sources, depending on the circumstances that exist at the activity and in the employment area.

1.12. Spouses on Leave Without Pay (LWOP) Status. A spouse accompanying a transferring AF military or civilian sponsor, and who is either in LWOP status, has competitive status, or equivalent appointability, is entitled to compete for available positions in the new geographic area. Consideration is given up to and including the highest grade for which qualified and eligible. The servicing CPF will provide counseling and information about AF installations in the new commuting area. The gaining installation will continue to counsel and to afford the appropriate consideration for positions for which qualified.

1.13. Employees on Retained Grade and Retained Pay. **Table 2.3**, provides for the priority referral specifically for employees affected by RIF, transfer of function (TOF), or reclassification of position, who are placed on retained grade or retained pay.

1.14. Filling Positions at the GS-15 level in the Competitive Service. Except for positions covered by career programs that specify an alternate method of identifying candidates, all GS-15 position vacancies in the competitive service, including those overseas, require AF-wide competition unless the position is to be filled by reassignment. The vacancy announcement conforms to the promotion plan and substantiating job analysis conducted in consultation with management officials. The announcement contains sufficient information so as to provide the potential applicant with adequate knowledge of the position, responsibilities, important KSAs and training requirements, application instructions, Joint Travel Regulation (JTR) information, and other pertinent job information. The CPF will refer employees of the activity with repromotion entitlement for consideration according to their priority (see **Table 2.3**) before issuing the vacancy announcement.

1.14.1. Candidates for GS-15 positions are advised to file their application to the recruiting activity, according to the vacancy announcement. The candidate's servicing CPF furnishes all relevant information regarding the candidate's identification and participation in the Air Force *Executive Leadership Development Program, Air Force Instruction (AFI) 36-401.*

1.14.2. The servicing activity first screens the qualifications of applicants against the quali-fication standard and other basic eligibility criteria. Candidates may be tentatively ranked or grouped in broad qualification categories against the job analysis/promotion plan.

1.14.3. In the final evaluation and ranking of candidates, a panel is assembled to assess the relative qualifications of competing candidates. Panels are not required in cases of 15 or fewer eligible competitors. The Secretary of the AF establishes, appoints, and approves panels for positions in the Office of the Secretary. The functional chiefs (Deputy Chief of Staff, or Comptroller and chiefs of comparable offices) do the same for positions in HQ USAF. Other positions are approved by the commander of a Major Com-mand (MAJCOM) or comparable organization or the Commander of staff offices. These officials may request higher authority to establish the panel. Each panel is composed of at least three high-grade civilian or military members, usually GS-15 or higher grade or of equivalent rank, appointed on a permanent or ad hoc basis.

1.14.4. The panel considers all candidates who meet minimum requirements. The panel also considers those repromotion eligibles previously referred who have further consideration entitlement and evaluates their qualifications against the ranking criteria in the promotion plan. The criteria must have breadth of scope so as to permit evaluation of the overall qualification of each candidate in relation to the total requirements of the position. The panel's evaluation is used to identify the top-ranking candidates who, in the panel's judgment, are highly qualified, considering such factors as, education, training and experience; appraisals/evaluations; job-related awards, honors, and outside activities. Before ranking or final selection, the panel (or the selecting official) may need to interview the leading candidates. When this is necessary, temporary duty travel (TDY) can be authorized for AF and other federal employees as provided in the JTR. The panel usually certifies 10 highest ranking candidates to the selecting official. Up to 15 may be certified, if meaningful differences cannot be made to reduce the group to a smaller number.

1.14.5. Commanders of MAJCOMs and comparable organizations and other staff offices may make the selection personally, request higher authority to make the selection, or authorize supervisors at any level over the position to make the selection. In the Office of the Secretary of the AF, selections may be made by officials designated by the Secretary. In HQ USAF, selections may be made by directors or heads of comparable or higher organizations, or they may request higher authority to make the selection. The 11 WG/DPC issues procedures for the Office of the Secretary and HQ USAF.

1.14.6. The specified requirements for publication of the vacancy, AF-wide consideration of candidates, and panel evaluation of candidates do not apply, or are modified when:

1.14.6.1. Filling a temporary position for one year or less by an authorized noncompetitive personnel action.

1.14.6.2. Filling a temporary position for one year or less through competitive promotion procedures or when the upgrading of a permanent, occupied position requires competition, provided the panel identifies and ranks all employees within the authorized special area of consideration.

1.14.6.3. A position is upgraded under circumstances permitting noncompetitive promotion of the incumbent (see **Chapter 2**).

1.14.6.4. Management selects a previously downgraded employee eligible for noncompetitive inservice consideration.

1.14.6.5. Management decides to fill the job inservice by the noncompetitive reassignment of an employee currently serving in another GS-15 position.

1.15. Annual Base-Level Affirmative Employment Progam Plan (AEPP).

1.15.1. Responsibility of the Directorate of Personnel Force Management (HQ USAF/DPP) and the Directorate of Personnel Force Development (HQ USAF/DPD).

1.15.1.1. Conduct periodic program evaluations.

1.15.1.2. Keep MAJCOM and comparable organization Directorates of Civilian Personnel and CPFs promptly advised of anticipated changes, new or revised civilian personnel programs, and other matters having significant impact on base-level AEPs and staffing programs.

1.15.2. Responsibilities of the MAJCOM Directorate of Civilian Personnel and Comparable Organizations.

1.15.2.1. Identifies unique command or priority staffing programs.

1.15.2.2. Provides program guidance as may be necessary to meet unique command or priority staffing programs for development or implementation of effective subordinate base-level AEPPs.

1.15.2.3. Assists subordinate CPFs in developing and implementing AEPPs.

1.15.2.4. Conducts periodic program evaluations.

1.15.2.5. Keeps subordinate CPFs promptly advised of anticipated or proposed command mission or funding changes, new or revised civilian personnel programs, and other matters having significant impact on base-level staffing programs.

1.15.3. Responsibilities of Commanders of Organizations Where CPFs Are Assigned.

1.15.3.1. Ensure there is a systematic approach to estimate civilian personnel requirements for each organization regularly and before needed, and plan methods to be used by the CPF in providing for a diverse work force.

1.15.3.2. Ensure that managers at all subordinate levels support the development and implementation of annual AEPPs.

1.15.3.3. Approve the annual AEPP.

1.15.4. Responsibilities of Functional Managers.

1.15.4.1. Take part in developing annual AEPPs.

1.15.4.2. Identify positions in their organization for targeted recruitment.

1.15.4.3. Actively support the goals and objectives in the annual AEPP.

1.15.4.4. Keep the CPF informed of any new or anticipated changes in mission or fluctuations in staffing requirements that would have an impact on the goals established in the annual plan.

1.15.4.5. Take necessary actions that will assure that positions are promptly filled.

1.15.5. Responsibilities of the CPFs.

1.15.5.1. Air Force installations with 2,000 or more civilian employees will develop an AEPP for minorities and women according to the Equal Employment Opportunity Commission (EEOC) management directives and AF guidelines. The AEPP will cover all serviced employees, including employees of tenant organizations.

1.15.5.2. Secure functional management and the EEO committee's input and support of the AEPP.

1.15.5.3. Review and monitor, at least quarterly, progress toward goals or objectives established in the annual plan and make any adjustment necessary based on fluctuations in mission, funding, labor market conditions, and other factors.

1.15.5.4. Advise key management officials of the content and objectives of the annual plan.

1.15.5.5. Conduct position management, affirmative action, FEORP, and staffing activities to meet goals and objectives of the plan.

1.15.5.6. Use a team approach involving functional managers, position classification, equal employment opportunity and staffing specialists, Special Emphasis Program Managers (SEPM), and other appropriate officials in the development of the plan.

1.15.6. AEPP Content**.** At a minimum, the annual AEPPs will contain:

1.15.6.1. General assessment of projected vacant positions likely to occur during the year covered by the plan.

1.15.6.2. Affirmative action and FEORP goals for the next year and for the end of any long-range affirmative action plan in effect.

1.15.6.3. Recruitment sources for filling projected vacancies, including persons with disabilities, disabled veterans, and Developmental Opportunities Programs (DOP) (see **Chapter 3**).

1.15.6.4. The methods and data used in arriving at the forecasts of expected vacancies and staffing sources.

1.15.6.5. Recruitment sources likely to yield adequate candidates of the types for which goals have been established.

1.15.6.6. An outline of the procedures, timetables, forms, and formats used in planning and tracking affirmative employment activities.

1.15.6.7. Provision for a quarterly review, update, and evaluation as may be necessary.

1.15.6.8. A plan for the prevention of sexual harassment in the workplace, including specific steps taken to inform employees of their rights to file sexual harassment charges; types of training programs conducted; agency codes of conduct or other materials designed to prevent sexual harassment in the workplace; proposed methods to ensure accountability within the activity for maintaining a workplace free of sexual harassment; any other initiatives already taken or proposed by the activity.

1.16. Records Disposition. Maintain and dispose of files created by prescribed processes in accordance with AFMAN 37-139, ***Disposition of Air Force Records - Records Disposition Schedule.***

Chapter 2

THE AIR FORCE MERIT PROMOTION PROGRAM (MPP)

2.1. Policy Objectives. Air Force promotion policy is based on strict conformance with merit principles specified in Title 5 Code of Federal Regulations, (CFR) Part 335, *Promotion and Internal Placement.* This merit promotion and placement plan provides a uniform and equitable means of referral and selection for all placement actions according to merit principles under merit promotion procedures. A sound promotion program, properly administered and fully supported by managers and employees at all levels, is essential to the staffing of an effective and highly motivated civilian work force. Identifying, qualifying, evaluating and selecting candidates must be made without regard to lawful political affiliation or non-affiliation, religion, labor organization affiliation or non-affiliation, marital status, race, color, sex, national origin, nondisqualifying disability, sexual orientation, status as a parent, age or other non-merit factors and must be based solely on job-related criteria according to legitimate position requirements. Failure to adhere to equal opportunity or merit principles may compel a commander or designee to withdraw selecting authority from a supervisor and delegate it upward. The program is directed toward:

2.1.1. Accomplishing mission goals by staffing positions with high quality employees.

2.1.2. Providing career opportunities for employees and making sure that all employees have access to information about these opportunities.

2.1.3. Ensuring management is aware of high quality employees who have the capacity to perform in more responsible assignments.

2.1.4. Encouraging employees to be mobile in the interest of broadening their experience and increasing their qualifications.

2.1.5. Ensuring employees are placed in positions for which they are best qualified.

2.1.6. Ensuring the skills, qualifications, achievements, and promotion potential of employees are recognized and fairly considered in the staffing process.

2.1.7. Encouraging employees to improve their performance and to develop their skills.

2.2. Key Principles. The following principles form the basis of the AF Merit Promotion Program:

2.2.1. All employees within a designated area of consideration who meet the minimum qualification standards and any legal or regulatory requirements imposed by OPM, or other authority, are considered eligible for promotion or placement.

2.2.2. Areas of consideration within which candidates are identified to compete for advancement are established and adjusted as necessary to provide management with a sufficiently broad number of high quality candidates from which to choose and to provide employees with adequate opportunities to advance.

2.2.3. Appropriate job-related criteria are applied with fairness in evaluating candidates to differentiate among their qualifications and to identify those best qualified for advancement.

2.2.4. Selections must be made without discrimination for any nonmerit reason and without favoritism based on personal relationships or patronage.

2.2.5. Consideration may be given to candidates from outside the AF.

2.2.6. Consideration is given to input from employees, employee groups, and recognized labor organizations in developing and establishing merit promotion procedures. Promotions and placements into positions with known promotion potential are usually competitive. Promotions without competition are authorized with due consideration to recognized merit principles. Employees are kept informed about the promotion program, the provisions and procedures for promotion plans affecting them, and eligibility requirements. They are given full access to information about advancement opportunities and how to take advantage of these opportunities.

2.3. The Right to Select or Nonselect From Among a Group of Best Qualified Candidates. Provided there are no higher mandatory placement priorities, managers have the right and the responsibility to select from other appropriate sources, determining which is most likely to meet mission objectives, contribute new ideas and viewpoints, and meet the Air Force Affirmative Employment Program objectives and goals. These include, but are not limited to merit promotion candidates. Applicants from any recruitment source external to the permanent AF workforce may be considered independent of, concurrently, before, or after the referral of candidates from the workforce. The Career Programs will issue competitive internal referral certificates for all career program vacancies and an external certificate when requested. See AFMAN 36-606 for individual career program guidance.

2.4. General Coverage.

2.4.1. This plan applies to all appropriated fund employees occupying permanent and indefinite positions in the competitive service including those on Overseas Limited Appointments of indefinite or not to exceed five years duration because of the overseas rotation program. The plan also applies to employees serv-ing under excepted service appointments who have competitive status, and employees currently serving under Veterans' Readjustment Appointments (VRA) or Schedule A 213.3106(b)(6) Family Member Appointments whose positions are temporarily converted to the excepted service. Also included are employees under both competitive and excepted appointments as here described who are absent in military service, serving with international organizations, or in leave without pay status while in receipt of compensation. All aforementioned employees receive consideration by self-nominating for a job listed under a vacancy announcement and are evaluated by the Standard Automated Inventory and Referral System (STAIRS).

2.4.2. When the area of consideration is expanded outside of DoD, this plan applies to all status and otherwise appointable applicants self-nominating from external sources, including reinstatements, transfers; those appointable under any non-competitive appointing authority and candidates eligible under the Veterans Employment Opportunities Act (VEOA) of 1998. When considering candidates from outside the DoD for competitive service vacancies lasting more than 120 days, regional centers must notify the Office of Personnel Management per 5 CFR 330.102 (b) and 5 CFR 330.707(a). Vacancies will be posted on USAJOBS.

2.4.3. This plan applies to internal placement into all positions in the competitive service, all Career Program covered positions, including Defense Civilian Intelligence Personnel

Systems (DCIPS) positions, and specifically designated positions in the excepted service, with the following exclusions:

2.4.3.1. All positions above GS-15, Scientific and Professional (ST) positions, and Senior Executive Service (SES) positions, and other equivalent positions at the senior level.

2.4.3.2. Positions covered by OPM-approved personnel demonstration projects.

2.4.4. Employees will be excluded from consideration under the following conditions:

2.4.4.1. They have not self-nominated under STAIRS by the closing date of the vacancy announcement.

2.4.4.2. They have not completed 90 days of service after appointment from an OPM or DEU competitive certificate resulting in reassignment or change to lower grade to a different line of work, reassignment or change to lower grade to a different geographical area, or promotion.

2.4.4.3. They are on leave without pay (LWOP) and are not expected to return to duty or are on sick leave pending disability retirement.

2.4.4.4. They occupy a formal developmental position with a target grade equivalent to or higher than the target grade of the position being filled. (see para **2.6**).

2.4.4.5. They have a current unacceptable appraisal.

2.4.4.6. The position requires access to sensitive information and their security clearance has been revoked or denied.

2.4.4.7. They do not meet time-in-grade requirements when such requirements apply.

2.4.5. This guidance applies to career management programs established by HQ USAF for specific occupation groupings and grade levels developed in consonance with governing merit promotion principles. The qualifications described in AFPD 36-6, *Civilian Career Management* **,** and AFI 36-601, *Air Force Civilian Career Program Management, and* AFMAN 36-606, *Volume 1, Air Force Civilian Career Program Management* and AFMAN 36-606, *Volume 2, Air Force Civilian Career Planning* address program unique "best qualified" criteria applicable to individual career programs.

2.4.6. Candidates Certified on OPM or DEU Certificates. Current AF employees referred on OPM or DEU certificates and who may be referred concurrently from an inservice referral list, may be selected from either list.

2.4.7. Details. Short-term details of 30 consecutive days or less must be recorded by the supervisor on AF Form 971, Supervisor's Employee Brief.

2.4.7.1. Details of 120 days or less to a position classified at a higher grade may be made non-competitively. Successive details beyond 120 days will be made using competitive procedures (**Table 2.1**).

2.4.7.2. Employees are responsible to update their records to document any detail not covered by an official personnel action.

2.4.7.3. The AF career programs do not approve nor process details except when the detail is part of a formal developmental program.

2.5. Reinstatement and Transfer Eligibles. Management may request that external applicants be considered for higher-graded positions than currently or previously held. These candidates must be rated and ranked under the same criteria as current AF employees and must rank among the "best qualified" to be referred. External candidates who meet or exceed all ranking criteria as compared to the lowest ranking referred AF candidate may be referred on a separate listing.

2.6. Formal Trainee or Apprentice-Type Positions. Employees in formal trainee or apprentice-type positions, PALACE Acquire or Copper Cap interns must be informed in writing at the time of their enrollment in the training program that they are excluded from consideration up to and including the target grade of the position held.

2.7. Applicability to Positions Outside the Competitive Service.

2.7.1. When all or a majority of the positions at an activity are in the excepted service and are under the same appointment authority, a MPP is established to provide a systematic and equitable method of selecting employees for promotions. The policies and procedures of this instruction should be followed to the extent practicable.

2.7.1.1. All excepted service career program covered positions will be filled by the career programs according to this plan.

2.7.2. Current AF employees in the excepted service having personal competitive status or serving on appointments which convey competitive status eligibility are entitled to consideration for competitive service positions according to this plan. These employees are afforded the same consideration given regular competitive service employees in terms of career progression and merit selection principles.

2.8. Applying Competitive Promotion Procedures.

2.8.1. Use of competition in filling certain positions is based on requirements specified in 5 CFR Part 335; AFPD 36-2, *Employment and Affirmative Action;* and AFI 36-2024, *Staffing Civilian Positions.* Determination of the use of competitive procedures will be made by the CPF in coordination with local management.

2.8.1. **(USAFE)** Removes reference to AFI 36-2024, Staffing Civilian Positions. Reference should read: 2.8.1. Use of competition in filling certain positions is based on requirements specified in 5 CFR Part 335; AFPD 36-2, *Employment and Affirmative Action.* Determination of the use of competitive procedures will be made by the CPS in coordination with local management.

2.8.2. **Table 2.1** lists personnel actions that are subject to competition and those that are not. It also shows whether the locally established area of consideration must be used in the competi-tive process or whether a special area may be used. Merit promotion processing procedures are outlined in **Table 2.2**. The Civilian Personnel Officer (CPO) or designee is responsible for determining whether an action will be subject to competition and the extent of that competition. When a proposed action is not specifically covered by the table, basic merit principles should be applied in deciding whether to require competition. Even when the table exempts an action from the requirement for competition, the CPO may choose to apply the

competitive process when use of competitive procedures would be consistent with merit principles and would be in the best interest of management.

2.8.3. Reemployment Priority List (RPL). Selecting a candidate from the RPL for a position at a higher grade than that last held in the competitive service must be made using competitive procedures.

2.9. Actions Not Subject to Competition. Supporting documentation citing the rule and paragraph of the MPP that excepts competition should be annotated in the remarks section (i.e., Part D) of the Request for Personnel Action (RPA) used to process the action. Actions involving career program covered positions must be approved by the appropriate policy council chair prior to effecting the action.

2.9.1. After all mandatory placement priorities are satisfied, an employee may be promoted up to and including a grade previously held on a permanent basis in the competitive service or other merit system and from which separated or changed to lower grade for other than performance or conduct reasons.

2.9.2. An employee initially selected under competitive procedures for a position with known promotion potential, may be noncompetitively promoted to intervening and target grades at management request. The employee must meet eligibility requirements for promotion to these grades, as well as any addi-tional qualifying criteria, e.g., satisfactory completion of all required training or higher-graded duties being assigned.

2.9.3. A position change at the same grade from a position with known promotion potential to a position with no known higher potential may be accomplished without further competition.

2.9.4. Upon exercise of restoration rights following military duty or service with an interna-tional organization, a former employee may be placed in any position for which qualified which is no higher in grade than the position to which he/she was promoted in absentia or because their former position was regraded during their absence.

2.9.5. An employee must be noncompetitively promoted following reclassification of his or her position at a higher grade due to application of new classification standards or following correction of classification error if he or she meets all qualification and legal requirements for the position. (See **Table 2.1** and **Table 2.4** for appropriate action to place incumbent.)

2.9.6. If a position is upgraded due to accretion/assignment of additional higher grade duties and responsibilities, the incumbent may be noncompetitively promoted provided there is clear evidence that the employee continues to perform the same basic functions as in the former position, that there are no other employees serving in similar or identical positions to whom the duties could be assigned, and he/she meets all qualification and legal requirements for promotion. In this case, there must be clear evidence that the newly classified position is a successor to the former and that the higher-graded position has absorbed the major duties of the former position. Included in this provision are employees returning from overseas, exercising return rights to obligated positions which have been upgraded during their absence. (See **Table 2.1** and **Table 2.4** for appropriate action to place incumbent).

2.9.7. Employees eligible for grade retention will be selected for positions at grades up to and including their retained grade within the same pay system from which demoted

according to the priorities and policies specified in **Table 2.3** and in accordance with procedures in the DoD Priority Placement Program (PPP) Operations Manual, DoD Retained Grade Placement Program (Program R).

2.9.8. An employee converted from an Student Career Experience Program (SCEP) appointment to a competitive service appointment in a career ladder may be promoted through the career ladder to target noncompetitively provided such provision has been included in the orginal SCEP training agreement.

2.10. Repromotion of Previously Downgraded Employees on Pay Retention. Employees who are entitled to pay retention, except those in formal development pro-grams, developmental opportunity positions, or those who accepted change to lower grade with pay retention in response to solicitation for a hard-to-fill position, may be repromoted noncompetitively up to the grade in the same pay system from which downgraded. Repromotion may occur as a planned management action or when determined to be within reach for certification, after which the employee will be given a priority referral in accordance with **Table 2.3**.

2.11. Areas of Consideration. The area of consideration for advertising positions covered by this plan is determined by the local CPF, in coordination with manangement, or by the Air Force Civilian Career Management Directorate for covered positions. Areas of consideration must be sufficiently broad to ensure the availability of high quality candidates and may be organizational, geographical, based on categories of positions, or a combination of these. Areas of consideration may be extended geographically or organizationally, or both, and the extension may occur simultaneously or successively.

2.11.1. Determination of the area of consideration is based on such factors as availability of quality candidates locally, AEPP objectives and goals, short- and long-range manpower and skills requirements, and other factors.

2.11.2. If expansion of the area of consideration could result in a permanent change of station (PCS), the gaining organization must certify that funds are available prior to the expansion of the area of consideration. Job announcements will indicate that PCS funds will or will not be avaliable. For career program covered positions, refer to AFMAN 36-606, Vol 1.

2.11.3. **(Added-USAFE)** USAFE management officials and personnel offices must screen candidates so the list of eligibles includes only United States nationals, does not include anyone ordinarily resident in the host country, and does not include anyone with dual-nationality. USAFE management officials and personnel offices should contact their servicing legal offices if there is any question about a candidate's eligibility. Also, USAFE management officials will determine, prior to advertising the vacancy, whether or not it is in the Government's best interest to pay PCS expenses. If payment of PCS expense is not considered in the best interest of the Government, and therefore not authorized, recruitment will be limited to the local commuting area but will include, as a minimum, all DoD employees in that area.

2.12. Identifying Candidates. The evaluation of self-nominated AF candidates for eligibility, qualification and ranking will be accomplished through the automated system to identify those eligible for promotion, reassignment, and voluntary change to lower grade.

2.12.1. Job listings may be obtained from several announcement platforms: the Air Force Personnel Center's website, OPM's USAJOBS website, AFPC's Civilian Announcement Notification System (CANS), or AFPC's Interactive Voice Response System (IVRS). Employees may subscribe to CANS which will notify them by electronic mail when a vacancy has been posted. For the benefit and ease of the employees seeking new job opportunities, all new vacancies will be updated once a week, on the same day of the week, and will be posted for a minimum of five workdays.

2.12.2. Candidates must self-nominate for consideration for positions, including career program covered positions, listed at their current installation or at other installations that have advertised an expanded area of consid-eration in the vacancy announcement. Self-nominations must be accomplished by the closing date of the announcement.

2.12.3. All eligible employees who self-nominate are considered in STAIRS through a record review process that identifies those who are best qualified as validated by the Job Analysis/ Promotion Plan.

2.12.4. Newly covered employees for whom the necessary qualifications and evaluation data are not yet available for ranking may be temporarily excluded from internal consideration pending receipt of complete record. No employee will be excluded for a period of longer than 90 days.

2.12.4. **(USAFE)** Employees are required to submit resumes for vacancy announcements.

2.12.4.1. Newly covered employees who are not yet fully integrated into the internal system may be considered for promotion, reassignment or change to lower grade for other AF job opportunities by submitting a full resume under an external vacancy announcement.

2.12.4.1. **(USAFE)** Employees are required to submit resumes for vacancy announcements.

2.12.5. The Air Force Reserve Command (AFRC) may refer Air Reserve Technician (ART) officers for vacancies whether or not they self-nominate.

2.13. Priority Referral. The order of special placement consideration and referral in filling vacant positions will be in accordance with **Table 2.3**.

2.13.1. **(Added-USAFE)** Order of special placement consideration and referral in filling vacancies will also be done in accordance with the USAFE Staffing Framework Guidance.

2.14. Job Analysis/Promotion Plan. A Job Analysis/Promotion Plan identifies specific job-related criteria, knowledge, skills and abilities (KSAs), as well as other characteristics necessary to determine which candidates are "best qualified" for referral to a position being filled. A core personnel document (CPD) or position description will be used as the basis for the job analysis. Documentation of best-qualified criteria is made on the Job Analysis/Promotion Plan Template in the Civilian Personnel Decision Support System (CPDSS).

2.14.1. A personnel specialist and a subject matter expert normally perform the job analysis. The job analysis identifies major job requirements (MJRs) and essential KSAs required to successfully perform the duties of the position to be filled.

2.14.2. The documented promotion plan is developed as a result of a job analysis process. It is an objective statement of qualification requirements, documented as STAIRS search criteria, against which employees are evaluated. The plan must show as a minimum the positions covered; documentation of the minimum qualification requirement; appropriate best qualified factors; selective placement factors (if used) and applicable ranking factors. Valid job-related evaluation criteria that extend beyond the minimum requirements specified by the qualification standard must be used to permit meaningful ranking of eligible candidates. Candidates are evaluated utilizing the ranking criteria.

2.14.3. Career program panels or equivalent, composed of PALACE Team representatives and designated functional specialists, will develop standard AF-wide promotion plans, as applicable, for filling covered positions. The Job Analysis Panel Chair or equivalent and the personnel specialist supporting the respective career program will ensure that plans are validated and approved according to OPM. Approval authority is the policy council chair or Job Analysis Panel Chair, or equivalent, as designated by the career program.

2.14.3.1. Specific career program policy councils determine the extent to which the promotion plans include relevant acquisition position requirements. Acquisition Corps membership and certification level requirements will be included in the Job Analysis/Promotion Plan as qualification requirements determined by the policy council.

2.15. Certification for Selection.

2.15.1. Promotions. Normally, only the “best qualified” candidates will be referred for selection based upon individual qualifications and position requirements. The Job Analysis/Promotion Plan will provide meaningful distinctions or “rules” in the skills identification process in order to develop a promotion certificate. Generally, fifteen candidates will be referred on a certificate. For career program covered positions, up to fifteen best-qualified candidates will be referred including candidates earning the identical score as the last referable candidate. For non-covered positions, the number to be certified may be determined locally and sort factors may be used to refer "best qualified" candidates tied with the last referred candidate. When sort factors do not produce sufficient numbers of “best qualified” candidates for consideration, additional candidates may be referred if their quality of experience is indicative of successful performance of the duties of the position(s) being filled.

2.15.1.1. Best-qualified candidates with requisite skills may be further identified using the following sort factor sequence: a) Civilian Promotion Appraisal, AF Form 860A **Civilian Rating of Record**, Appraisal Factors - Manner of Performance; b) incentive awards received in last 3 years; and c) Service Computation Date- Civilian (SCD-Civ). The Civilian Promotion Appraisal scores are applied using scores derived from algorithms to determine rank order.

2.15.1.2. The qualifications described in AFPD 36-6, *Civilian Career Management*, and AFI 36-601, *Air Force Civilian Career Program Management,* AFMAN 36-606, *Volume 1, Air Force Civilian Career Program Management* and AFMAN 36-606, *Volume 2, Air Force Civilian Career Planning* address occupation unique “best qualified” criteria applicable to individual career programs.

2.15.2. Competitive Employee Reassignments/Change to Lower Grade. Candidates who voluntarily seek reassignment or change to lower grade must self-nominate under the appropriate vacancy announcement and will be considered at the request of selecting official. Candidates are evaluated/ranked/referred in accordance with career program procedures or locally established procedures. Reassignment and change to lower grade candidates may be referred when determined to be as well qualified as referred promotional candidates. The number of competitive reassignment and change to lower grade candidates referred will be consistent with the provisions of paragraph **2.15.1**.

2.15.3. Competitive Details. The same definition of minimum area of consideration described in paragraph **2.11** will be used. Detailed employees are not required to meet OPM qualification requirements for experience, but must meet any positive education, certification or licensing requirements of the position. Job analysis will be used to determine which candidates will be referred for selection for competitive details. Paragraph **2.4.7.1** describes when a detail may be made noncompetitively and when details require competition. Air Force career programs do not process competitive details.

2.15.4. Alternate Certification. An employee may be selected, absent full certification, if after the full competitive process has been accomplished, the employee has been determined to be among the group of "best qualified" candidates who would have been referred on a certificate. This provision applies to in-service placements only. Candidates for career program covered positions will not be referred by alternate certification process.

2.15.5. AF recommends that candidates are listed alphabetically on referral certificates, however, local bargaining agreements may specify other methods of presenting candidates.

2.15.6. Candidates selected for ART positions must meet both military and civilian requirements of the new position. Military qualifications will be determined by the servicing Military Personnel Flight (MPF).

2.16. Promotion Registers / Certificates.

2.16.1. One-Time Registers. These are registers used to certify candidates to a selecting official when one or more identical vacancies are to be filled.

2.16.1.1. All candidates referred must meet the eligibility requirements for the position when the certificate is issued. Candidates may be referred within 30 days of qualifying for shortage category positions which will be identified by the local CPF for base level positions or by the appropriate career program for covered positions based on prior experience filling the same or similar positions.

2.16.1.2. Refer to AFMAN 36-606 Volume 1, *Air Force Civilian Career Program Management* for procedures for returning or extending career program certificates. All other certificates must be returned to the regional service center within 30 calendar days of receipt. Extensions may be approved by the chief of the AFPC/DPC Regional Division, by the chief of the appropriate service center, or designee.

2.16.2. 90-Day Registers. These registers may be established when it is anticipated that several positions with the same title, series, grade, job specialty, and location will be vacant in a 90-day period.

2.16.2.1. Employees who are within three months of attaining full eligibility for placement in the position will be entered on the register. These employees may not be certified for placement consideration until they are fully qualified and meet all eligibility requirements.

2.16.3. AFRC may establish ART promotion registers for one-time referral or for indefinite use. If used for a prolonged period, the register must be regenerated at least every 90 days to consider new employees and those who may have become eligible since the last ranking to be considered.

2.17. The Selection Process.

2.17.1. When a referral certificate is issued, the selecting official must, as a minimum, review system-generated career briefs of all those referred.

2.17.1.1. **(Added-USAFE)** For USAFE, selecting officials are required to review resumes.

2.17.2. Interviews. If the selecting official chooses to interview, he/she may interview one or more of the candidates on the certificate. It is not required that all candidates be interviewed but for those who are, the same interview questions will be used.

2.17.2.1. All questions used in a selection interview must be job related and tied to KSAs identified in the core personnel document or job analysis.

2.17.2.2. If some, but not all, candidates are interviewed, the selecting official must document the reasons for not interviewing and the method used to evaluate the remaining candidates (i.e., records review, supervisor inquiry, past working knowledge of the employee). The documentation and interview questions/responses are maintained by the selecting official, as locally determined.

2.18. Notifying Employees.

2.18.1. Applicants may inquire as to the status of the vacancy refrerrals via IVRS/Web. Selecting officials will notify candidates of non-selection either orally or in writing.

2.18.1.1. **(Added-USAFE)** Under Air Force Single Staffing Tool, AFPC sends automatic notification to applicants regarding status of non-selections.

2.18.2. Nonselection of employees absent in military service or serving with international organizations, who have applied for consideration, must be documented. This documentation is retained in the nonselected employee's Official Personnel Folder (OPF) or electronic record and includes the position for which considered, the candidate selected, date of selection, and other pertinent information.

2.19. Releasing Employees.

2.19.1. After offers have been extended, selecting officials will arrange release dates with the losing supervisor and coordinate with the CPF when selections are made from the same installation.

2.19.2. The gaining and losing CPFs will coordinate the effective date for selections from other installations with the losing and gaining supervisors and the regional service center.

When possible, the reporting date will be within 45 days of selection. Reporting to overseas locations may take longer than 45 days.

2.19.3. Promotion. Employees selected for promotion at the same installation will be released by the losing organization so the action may be processed at the beginning of a pay period within 20 calendar days after selection. The action may be delayed for administrative reasons related to the placement (i.e., physical examination, security clearance, etc.) or at the employee's request if approved by both the gaining and losing supervisors.

2.19.4. Reassignment and Employee-Requested Change-to-Lower-Grade. The effective date for reassignments and employee-requested change to lower grade which do not require a PCS will normally be the beginning of a pay period within 20 calendar days of selection. No employee may be retained in his/her current position for more than 20 calendar days if such retention would adversely impact his/her selection. The action may be delayed for the same reasons and under the same conditions as specified in para **2.19.3**.

2.20. Temporary Promotions. The area of consideration for temporary promotions is normally the employees of the installation where the vacancy exists and may be further limited to an organization. If the area of consideration is expanded outside the installation, the selected employee may be temporarily promoted upon agreement between the gaining and losing organizations. **Table 2.5** lists the instances in which temporary promotions are authorized and specifies the conditions and limitations that apply to each.

2.20.1. CPFs must notify the appropriate career program of temporary promotions for up to 120 days. Actions beyond 120 days, including extensions, require prior coordination and approval by the respective career program. Career programs may issue a referral certificate with a limited area of consideration for temporary fills that will extend beyond 120 days.

2.20.2. Refer to AFMAN 36-606 for filling career broadener positions by temporary promotion.

2.20.3. Temporary promotions for 120 days or less may be processed noncompetitively. If the promotion is expected to last or be extended beyond 120 days, competitive procedures apply. Supervisors are responsible for timely submission of extension/termination requests to the CPF for processing.

2.20.3.1. Temporary promotions for a civilian deputy to a military chief's position may be made for up to one year non-competitively (**Table 2.5, rule 3**).

2.20.4. Temporary promotions in excess of 120 days to a grade higher than previously held on a permanent basis must be competitive. IAW 5 CFR 335.102(f) the total period of the temporary promotion may not exceed five years.

2.20.5. Prior to the effective date of the action, employees selected for temporary promotions will be informed, in writing, of the temporary nature of the promotion and related conditions, including return to their former grades. If the employee is receiving a retained rate, he or she will be informed of the effect of the termination of the promotion on his or her pay.

2.20.6. Terminating Temporary Promotion. **Table 2.6** lists the placement actions that may be taken when terminating a temporary promotion and the conditions under which they may be made.

2.21. Reassignments and Changes-to-Lower-Grade Absent an Announcement.

2.21.1. Reassignments may be processed noncompetitively to a position with no known promotion potential beyond that of the employee's current position or that which the employee has held on a permanent basis. Reassigned employees must meet basic and statutory qualification requirements of the position to which they are reassigned or meet the requirements of an approved modification of qualifications.

2.21.1.1. Management-Initiated Reassignments. Selecting officials may request the reassignment of an employee with the concurrence of the losing organization with coordination from the CPF.

2.21.1.2. Management-Directed Reassignments. Management officials may direct the reassignment of a individual to a position within their organization or their line of command without referral of other candidates.

2.21.2. Voluntary change to lower grade actions at employee's request and with management coordination may be noncompetitively processed if the employee meets basic eligibility requirements or the requirements of an approved modification of qualifications and the position has no known promotion potential beyond the employee's current grade or highest grade previously held on a permanent basis.

2.21.3. Non-competitive reassignments or changes to lower grade actions to a career program covered position require prior coordination and approval by the respective career program.

2.22. Spouse Preference Candidates. Spouse preference eligibles will be referred for consideration in accordance with DoD PPP procedures and **Chapter 4** of this AFMAN. For career program covered positions, refer to AFMAN 36-606.

2.23. Employees Entitled to Noncompetitive Priority Consideration as Corrective Action. When the CPF or regional center finds a procedural violation, regulatory violation, or program violation has occurred, they must process a corrective action. If the corrective action does not include vacating the position, an employee who was not given proper consideration because of the violation will be given priority consideration. The priority consideration will be for any position similar to that for which proper consideration was omitted (i.e., same grade and/or target grade) and for which the employee is qualified. The employee will be given one priority consideration for each instance of omission. The employee will be referred to the selecting supervisor before referral of candidates from other sources who are not entitled to higher priority consideration. Management retains the right to select or non- select the employee. Since selection of these employees is optional, supervisors may request additional candidates before final decision.

2.24. Promotion Records.

2.24.1. Promotion Plan. All AF organizations must maintain a copy of this promotion plan and make it available for their civilian employees and management officials.

2.24.2. Safeguarding Promotion Materials. Information contained in automated data products, promotion registers, and promotion certificates may not be disclosed to unauthorized personnel. Promotion certificates may be electronically transmitted, faxed, e-mailed, presented personally, or mailed in a sealed envelope to selecting officials and

returned to the CPF and the regional center in the same manner. Caution must be taken when transmitting and receiving promotion materials to ensure unauthorized personnel do not inadvertently gain access. Employees may not be informed of another employee's rank order or assessment of qualifications against eligibility or ranking criteria.

2.24.3. Individual Promotion Actions. Records of individual promotion actions taken under this plan will be maintained and disposed of according to AFMAN 37-139, *Disposition of Air Force Records - Records Disposition Schedule.*

2.24.4. Records Maintained by Selecting Officials. Selecting officials will maintain all substantive documentation related to the consideration of competing candidates. This may include, but is not limited to, interview questions, notes on interview responses, record of contacts with previous supervisors of candidates, nonselection memos, notes on review of employee briefs or candidate résumés, and any ratings or informal rankings made on referred applicants or employees. Maintain this documentation for five years or until audit completion by OPM, whichever is sooner from the date of notification of selection/nonselection.

2.25. Promotion Information to Employees. All employees covered by this plan will have access to a copy of the plan by requesting it from their own organization or from the CPF at their installation.

2.25.1. The employee or applicant, or designated representative, is entitled, upon inquiry to the CPF, to be informed of his/her qualifications for a specific fill action, and whether or not he/she is within a group of "best qualified" (when a search for candidates has been completed and the best qualified have been determined). However, the employee or applicant, or their designated representative, may not be informed of the assessment of another employee's qualifications without that employee's written permission.

2.25.2. Employees considered under the automated system are also entitled, upon request, to full disclosure of the specific criteria in the job analysis/promotion plan.

2.25.3. Upon request, the selecting supervisor must inform the nonselected candidates of the reasons for nonselection. The supervisor must adhere to the provisions of the Privacy Act and may not discuss the rank order or assessment of qualifications against eligibility or criteria of the candidate selected or any other candidate referred.

2.26. Keeping Employees Informed. At least once annually, the local CPF will remind employees, through published articles, of the principles and procedures outlined in this plan and of OPM and AF directives dealing with the subject of promotion.

2.26.1. Employee Audit of Employee Brief. New employees will be provided a copy of their placement information contained in system. Employees are responsible for reviewing and updating their records for the purpose of self nomination for positions being announced under this plan.

2.27. Employee Complaints. An employee, who believes his or her experience was not properly credited, was incorrectly ranked, or that the terms of the promotion plan were not otherwise followed, thereby depriving him/her of promotion consideration, is encouraged to discuss his/her concern informally with the local CPF. If the issue concerns the ranking and referral process, the local CPF may contact the regional center or the appropriate career program. If the concern deals with the selection process, the matter should be resolved locally. If these

efforts are unsuccessful, the employee may submit a formal grievance in accordance with negotiated or agency grievance procedures. CPFs must keep the appropriate career program informed of complaints concerning covered positions. Any corrective action involving career program covered positions must receive the coordination and approval of the policy council chair prior to final action.

2.28. Evaluation. The MPP and merit system operations under the plan will be evaluated annually as part of HQ USAF/DPP internal program review. In addition, employee selection procedures will be continually evaluated in accordance with 5 CFR Part 335 and appropriate action taken when necessary.

2.29. Omissions. The guidance contained in the OPM and AF directives or policies will be employed in all situations not specifically covered by this plan.

Table 2.1. Application of the Competitive Process.

RULE	When the proposed action is	to position	and	then competition is required (note 1)
1	Promotion without time limitation	of higher grade under same pay schedule	the action is not covered by rules 12 thru 21	yes.
2	Reassignment	at the same grade under same pay schedule	position is one with known promotion potential and employee will gain eligibility for noncompetitive career promotion	yes.
3			position is not one with known promotion potential	no.
4	Change to lower grade	of lower grade under same pay schedule	position is one with known promotion potential and employees will gain eligibility for noncompetitive career promotion to grade higher than previously held	yes.
5			position is not one with known promotion potential	no.

RULE	When the proposed action is	to position	and	then competition is required (note 1)
6	Assignment from one pay schedule	of higher representative rate under different pay schedule		yes.
7		of same or lower representative rate under different pay schedule	The position is one with known promotion potential	yes.
8			The position is not one with known promotion potential	no.
9	Reinstatement or transfer	at higher grade than last held		yes.
10		at same or lower grade than last held	Position is one with known promotion potential to grade higher than previously held	yes.
11			Position is not one with known promotion potential	no.
12	A detail	of the same grade and is not one with known promotion potential	The detail is for any length	no.
13		of higher grade or to position of same grade with known promotion potential	The detail is for 120 days or less (note 2)	no.
14			The detail is for more than 120 days (note 2)	yes. (note 3 and 4)

RULE	When the proposed action is	to position	and	then competition is required (note 1)
15	A temporary promotion or extension of temporary promotion	a. at higher grade under same pay schedule or b. under different pay schedule when action is processed as promotion or represents a promotion		See **Table 2.4**
16	A conversion of temporary promotion to permanent promotion (removal of temporary restriction)			See **Table 2.6**
17	A placement following temporary promotion by reassignment or change to lower grade without time limitation	a. under same pay schedule at a grade higher than the position from which temporarily promoted *or* b. under different pay schedule at higher grade (or level) than position from which temporarily promoted		See **Table 2.6**
18	Selection for training	N/A	training or development would enhance employee's qualifications	CPO or career program determination.

RULE	When the proposed action is	to position	and	then competition is required (note 1)
19	Promotion	Upgraded by classification	reason for upgrading of incumbent's position without significant change in duties and responsibilities (classification error or new or revised standards)	No. (note 5)
20			reason for upgrading is reconstitution of incumbent's position into successor position with clearly and solely identifiable duties of former position and there are no other employees serving in similar or identical positions to whom the duties could be assigned	No. (note 5)
21			reason for upgrading is reconstitution of incumbent's position into successor position and position is not a clear successor or there are other employees serving in similar or identical positions to whom these duties could have been assigned	Yes. (notes 4 and 5)

RULE	When the proposed action is	to position	and	then competition is required (note 1)
22	Promotion from position of known promotion potential	a. Originally identified as the target position to which employee would advance without competition *or* b. which represents the full performance level of a career ladder	competitive procedures were fully applied at the time of placement into position of known promotion potential and all competitors were informed selection for the entry position could lead to promotion without further competition	No.
23	Promotion	to position to which employee was detailed for training or evaluation	the employee was selected for detail under full competitive procedures (including the normal area of consideration) and all competitors were informed the detail could lead to promotion without further competition	no.

RULE	When the proposed action is	to position	and	then competition is required (note 1)
NOTES: 1. "Yes" entries do not apply when: a. Candidate is eligible for noncompetitive promotion because full competition was applied earlier, or b. Candidate may have noncompetitive promotion eligibility as a previously downgraded employee, or c. Candidate is entitled by RIF regulations to the position under the representative rate rules, or d. Candidate is administratively assigned for physical or mental disability reasons or in place of a RIF action, to a position of higher representative rate without an increase in the rate of pay. 2. Time spent on temporary promotion or detail to higher position(s) during preceding year is counted toward the 120 day-limitation. 3. Competition is not required when detail is for purpose of qualifying employee whose position has been upgraded under situations described in rules 19 and 20. 4. Area of consideration may be limited to employees serving in identical or similar positions or organizations to which the duties could have been assigned. 5. Assure qualification and legal requirements are met.				

Table 2.2. The Merit Promotion Procedures.

STEP	Required Actions	Consideration, Determinations, and Actions
1.	Determine the applicability of competitive procedures.	Assuming there are no mandatory placements, review nature of action proposed and length of assignment. Apply **Table 2.1** to determine if exempt from competition. Screen local priorities for non-competitive referral (See note). If competition is required, proceed to step 2.

STEP	Required Actions	Consideration, Determinations, and Actions
2.	Conduct job analysis and develop the promotion plan.	Based on job analysis, determine qualifications requirements, selective placement factors, if any, screening factors, and ranking factors. Review established promotion plans to determine whether appropriate or if new plan is justified because of new or unique factors associated with the position. Consider nature of action, type of position, probable availability of candidates, AEPP goals, etc. The area of consideration is the area designed by the local promotion plan in which the CPF should reasonably expect to locate enough high-quality candidates, as determined by the CPF. The minimum area of consideration for career program covered positions is AF-wide.
3.	Identify competing candidates.	Certify from existing register, if established. If not established, issue announcement. Under merit promotion procedures and applying the competitive process, consider voluntary applicants within the designated area of consideration, and employees entitled to priority consideration serviced by the same CPF.
4.	Refer employees entitled priority consideration under competitive procedures.	Refer to **Table 2.3**. If no candidates are identified for priority placement or referral, or if all requirements for nonselection have been met, proceed to step 5.
5.	Rank competing candidates.	All employees in the prescribed area of consideration are screened against initial and basic eligibility criteria. Those meeting basic eligibility are then ranked and sorted by best qualified criteria as documented on the job analysis/promotion plan and paragraph **2.14**.
6.	Certify eligible candidates.	Determine number to be certified. Refer allowable number of best-qualified candidates from the STAIRS roster. Competitors on OPM certificates are sent for consideration under separate listing, current nontemporary employees from other federal agencies and all others eligible for noncompetitive appointment are ranked accordingly and may be referred by separate listing.
NOTE: - CPF may determine eligible local priority candidates may be referred non-competitively prior to applying the full competitive process.		

Table 2.3. Referral and Selection Priorities

Priority Order	Category of Candidate	Must Be Selected	Must be Considered and May be Selected	Conditions to be Observed	Remarks
A.	Applicant or employee with enforceable assignment rights or to be mandatorily placed as a corrective or remedial action. (note 1)	Yes.	N/A	N/A	None.
B.	Applicant or employee found to have been discriminated against and entitled to priority consideration for employment or promotion under the criteria of 29 CFR 1614.501.	No.	Yes	If not selected, document reasons for non-selection.	Entitlement restricted to only the next suitable vacancy.
C.	Air Force installation employee affected by RIF action. Includes administrative reassignments to vacancy, within or outside competitive level, of employee whose position is abolished, and who is within reach for release from competitive level; and reassignments under the general authority to reassign. (AF Supp to FPM Supp 351-1)	Yes, for same or lower grade, when necessary to satisfy RIF assignment rights.	N/A	N/A	Includes employees identified with incoming TOF as result of preliminary offer to transfer.

Priority Order	Category of Candidate	Must Be Selected	Must be Considered and May be Selected	Conditions to be Observed	Remarks
D.	Air Force employee or former employee who has partially recovered from a compensable injury and will be restored to duty.	Yes, at current or lower grade.	N/A	N/A	Activity commander or designee may approve exception to mandatory selection. Reasons must be documented. (The availability of a better qualified candidate is not an acceptable reason.)
E.	Air Force installation employee scheduled for separation for failure to accept offer of TOF. Includes employees who accepted preliminary offer of TOF, but for whom no offer was available at gaining activity. (AF Supp to FPM Supp 351-1)	Yes, at current or lower grade.	N/A	N/A	N/A
F.	Air Force installation employee whose position is being downgraded to correct classification error or application of new/revised standard.	Yes, at current or intermediate grade.	N/A	N/A	None.

Priority Order	Category of Candidate	Must Be Selected	Must be Considered and May be Selected	Conditions to be Observed	Remarks
G.	Employee with permanent mental or physical disability no longer able to perform full range of duties of current position. (note 2)	Yes. (note 3).	N/A	Reassignment may be directed; employee failure to report will result in separation for failure to accept reassignment.	Activity commander or designee may approve exception to mandatory selection and document reasons. (The availability of better qualified candidate is not an acceptable reason.)
H.	Air Force installation employees serving at a lower grade with grade retention entitlement.	Yes, at retained grade or intermediate grade in the same pay system from which down-graded.	N/A	N/A	Activity commander or designee may approve exception to mandatory selection. Reasons must be documented. Employee declination at intermediate grade results in terminations of consideration at grade level declined and below.

Priority Order	Category of Candidate	Must Be Selected	Must be Considered and May be Selected	Conditions to be Observed	Remarks
I.	Air Force installation employee receiving retained pay and entitled to priority repromotion consideration. (note 4)	No.	Yes, up to and including grade from which down-graded in the same pay system from which downgraded.	N/A	Employee declination at intermediate grade results in termination of consideration at grade level declined and below. (note 5 and 9)
	Other activity employees to be given priority repromotion consideration.		Consider at CPF option.		(Note 9).
J.	Reemployment Priority List (RPL) registrant and Registrants on DoD PPP Stopper List.	See DoD PPP Operations Manual order of offers and entitlements, and conditions under which registrants must be selected. (notes 6 and 7).	N/A	N/A	N/A
K.	Air Force employee eligible for noncompetitive inservice placement not covered by higher priority. (note 8)	No.	Consider at CPF option.	N/A	None.

Priority Order	Category of Candidate	Must Be Selected	Must be Considered and May be Selected	Conditions to be Observed	Remarks
L.	Candidates eligible for military spouse preference. DoD PPP Operations Manual.	Yes, if competititive action has been initiated and spouse is equally or better qualified when compared to competitive candidates and selection is made from competitive recruitment source.	N/A	N/A	N/A
M.	Candidates eligible for AF Civilian Spouse Preference, Program N.	No.	Yes	Under the same conditions as applies to Priority 3 candidates who are not military spouse preference candidates.	N/A
N.	All other sources, including promotions, new appointments, reinstatements and transfers requiring competition.	No.	N/A	Requirements of the Merit Promotion Program regarding consideration or selection of outside candidates for promotion must be observed.	N/A

Priority Order	Category of Candidate	Must Be Selected	Must be Considered and May be Selected	Conditions to be Observed	Remarks

NOTES:

1. Enforceable assignment rights include:
   a. Mandatory placements of an applicant or employee discriminated against or under terms of an informal settlement made under the criteria of 29 CFR 1614.501(a) and (b).
   b. Mandatory restoration after military service.
   c. Exercise of return rights after overseas service.
   d. Placement of manager or supervisor who fails to satisfactorily complete required probationary period. Includes subsequent placement of any employee to relieve coverage caused by earlier return to nonmanager or nonsupervisory position created for such return.
   e. Mandatory placement of fully recovered employee from workers compensation.
2. Not to be confused with recovered employees being restored from compensation roles. Reasonable accommodation must be considered.
3. Employee must be counseled that voluntary acceptance of a position at a lower grade or pay level terminates consideration for disability retirement.
4. Does not include employees demoted to enter formal training programs or upward mobility programs as a result of solicitation for hard-to-fill jobs or other similar circumstances.
5. A redetermination of the grade constituting a "reasonable offer" under 5 CFR 536.206 may result, because of changes in salary rates, in priority consideration being given to a grade level for which such consideration had been ended earlier. Under these circumstances, if the employee declines the "reasonable offer," retained pay entitlements are ended.
6. Air Force installations in foreign areas may employ locally available dependents of DoD military and civilian members ahead of displaced PPP registrants unless the registrant is from within the commuting areas.
7. Air Force installations in Guam may employ any locally available US citizen ahead of displaced PPP registrants from outside Guam, except those registrants whose home of record is Guam.
8. Includes incumbents of emergency essential positions who are unable or unwilling to perform duties of position

9. May be considered sequentially or concurrently..

Table 2.3. (USAFE) Referral and Selection Priorities.

Priority Order	Category of Candidates	Must be Selected	Must be Considered & May be Selected	Conditions to be Observed	Remarks	DPDS Code
A	Assignment Rights	Yes	N/A	N/A	None	A1
	Mandatory placement of an applicant or employee discriminated against or under terms of an informal settlement made under the criteria of 29 CFR 1614.501 (a) and (b)					
	Manager or supervsior who fails to satisfactorily complete required probationary period.				Includes subsequent placement of any employee to relieve coverage caused by earlier return to non-manager or non-supervisory position created for such return.	
	Mandatory restoration after military service				Establish on localiable until DoD establishes program code in ASARS	
	Mandatory placement of fully recovered employees from workers compensation within one year from the date compensation began 95CFR 353-301)				Employees fully recovered after more than one year from the date compensation was payable will be eligible for Registation in the RPL (5CFR 330.204)	

Priority Order	Category of Candidates	Must be Selected	Must be Considered & May be Selected	Conditions to be Observed	Remarks	DPDS Code
	Exercise of return rights after overseas service				If position is encumbered. Returnee must register in PPP	R1
B	Applicant or employee found to have been discriminated against & entitled to priority consideration for employment or promotion under the criteria of 29 CFR 1614.501.	No	Yes	If not selected, document reasons for non-selection.	Entitlement restricted to only the next suitable vacancy.	B1
C	AF installation employee affected by RIF action. Includes administrative reassignments to vacancy, within or outside competitive level of employee whose position is abolished, and who is within reach for release from competitive level: and reassignments under general authority to reassing. (AF Supp to FPM	Yes, for same or lower grade, when necessary to satisfy RIF assignement rights	N/A	N/A	Includes employees identified with incoming transfer of functjion as result of preliminary offer to transfer.	C1
D		Yes, at current or lower grade.	N/A	N/A	Activity commander or designee may approve exception to mandatory selection. Reasons must be documented. (The availability of a	G4

	Supp 351-1) Air Force employee or former employee who has partially recovered from a compensable injury and will be restored to duty.				better qualified candidate is not an acceptable reason.)	
Priority Order	Category of Candidates	Must be Selected	Must be Considered & May be Selected	Conditions to be Observed	Remarks	DPDS Code
E	AF installation employee serving a lower grade with grade retention entitlements.	Yes, at retained grade or intermediate grade in the same pay system from which downgraded.	N/A	N/A	Activity commander or designee may approve exception to mandatory selection. Reasons must be documented. Employee declination at intermediate grade reults in termination of consideration at grade level declined an below.	B6
F	Employee with permanent mental or physical disability no longer able to perform full range of duties of current polisition. (Not to be	Yes (Employee must be counseled that voluntary acceptance of a position at a lower grade or pay level terminates consideration for disability retirement).	N/A	Reassignment may be directed; employee failure to report will result in separation for failure to accept reassignment	Activity commander or designee may approve exception to mandatory selection and document reasons. (The availability of bettter qualified candidate is not an acceptable reason.)	E1 (New Code)

	confused with recovered employees being restored from compensation Roles. Reasonable accomodation must be considered).	Yes			This is a temporary local priority until the military spouse program overseas becomes fully automated. (Installations in foreign areas may employ locally available dependents of DoD military and civilian members ahead of displaced PPP registrants unless the registrant is from within the commuting area.)	
G	Military and Civilian Spouse preference eligibles in overseas locations		N/A	N/A		M1 (Revised Code)
		No			This priority will be deleted once a system enhancement is completed. (Maybe considered sequentially or concurrently)	
H	Employee to be given priority repromotion consideration		Consider at CPF option.	N/A		N1

Table 2.4. Upgrading a Position by Classification

RULE	If an occupied position is upgraded under situation described (note 1)	And the incumbent	then action is usually taken	alternative actions permitted are	Remarks
1.	rules 19 and 20, Table 2.1	is qualified and eligible	promote the incumbent without competition	none.	The employee may be taken out of the position only under adverse action procedures for reasons related to the upgrading decision. (note 2) RIF procedures may not be used to place employee.
2.		does not meet minimum OPM qualification standards or legal requirement for promotion	a. consider use of flexibilities and/or waivers *or* b. detail incumbent without competition, if appropriate	a. delete or redistribute duties to keep position at present grade level *or* b. administra-tively reassign incumbent to vacant position without loss of grade and salary	The incumbent may be demoted or separated only if cause exists and charges justify the proposed action. RIF procedures may be used to place employees.
3.		meets minimum OPM qualification s, but does not meet time-in-grade restrictions for promotions	consider waiver if appropriate or retain the incumbent in position in status quo as on detail until eligible for promotion		

RULE	If an occupied position is upgraded under situation described (note 1)	And the incumbent	then action is usually taken	alternative actions permitted are	Remarks
4.	rule 21, Table 2.1. Application of Competitive Process	is qualified and eligible for promotion and is within reach for selection under competitive procedures	promote incumbent under competitive procedures	delete or redistribute duties to keep position at present grade	The employee may be demoted or separated only if cause exists and charges justify the proposed action.
5.		does not meet minimum OPM requirements for promotion or is not within reach for selection under competitive procedures (note 2)	administratively assign incumbent to vacant position without loss of grade or salary		RIF procedures may not be used to place employee.

NOTES:

1. If the position is obligated for an employee absent in military service, he or she must be considered for, and may be entitled to promotion in absentia.

2. Employee may not be detailed and promotion process delayed until employee qualifies or is within reach for promotion to permit selection.

Table 2.5. Temporary Promotion (cont)

RULE	If the reason for temporary promotion is	and the period authorized is	Competitive selection required (note 1)	promotion may be extended (note2)	the temporary limitation may be removed (note 3)
1.	To provide temporary services: a. During employee's absence on approved leave b. During employee's absence at management's request, for example, TDY, detail, training, etc. c. When required by special project or emergency workload d. Of position vacated by temporary promotion	up to 120 days	No	NTE overall period of 120 days (note 4)	No.
2.		more than 120 days	Yes	Yes	Yes, when the area of consideration established locally under paragraph **2.20** has been observed.
3.	To assign civilian deputy chief to a military chief's position, classifiable to higher grade pending replacement of military chief	up to one year	No	Yes	No.

RULE	If the reason for temporary promotion is	and the period authorized is	Competitive selection required (note 1)	promotion may be extended (note2)	the temporary limitation may be removed (note 3)
4.	To promote: a. Employee whose position is scheduled to be abolished within 18 months because of base closure, major reduction or TOF b. Employee at continuing activity in function involved in function through transfer or merger	up to 120 days	No	NTE overall period of 120 days (note 4)	No.
5.	a. and b. of Rule 4, **Table 2.5**	more than 120 days	Yes	Yes	Yes, after the major reduction or transfer has been completed, provided the area of consideration established locally under paragraph **2.11** has been observed.
6.	To fill continuing positions held in reserve (“stock piled”) for placement of employees affected by base closure or TOF	up to 120 days	No	NTE overall of 120 days (note 4)	No.
7.		more than 120 days	Yes	Yes	Yes, when the area of consideration established under paragraph **2.11** has been observed.

RULE	If the reason for temporary promotion is	and the period authorized is	Competitive selection required (note 1)	promotion may be extended (note2)	the temporary limitation may be removed (note 3)
8.	To promote to continuing position an overseas employee registered for placement assistance in Overseas Priority Placement Program (PPP) or overseas employee within 6 months of established rotation dated	up to 120 days	No	NTE overall period of 120 days (note 4)	No.
9.		more than 120 days	Yes	Yes	Yes, when the area of consideration paragraph **2.11** has been observed.
10.	To promote to continuing position obligated to an overseas employees who will be exercising return rights within 6 months	up to 120 days	No	NTE overall period of 120 days (note 4)	No.
11.		more than 120 days	Yes	Yes	Yes, when the area of consideration established under paragraph **2.11**has been observed.

RULE	If the reason for temporary promotion is	and the period authorized is	Competitive selection required (note 1)	promotion may be extended (note2)	the temporary limitation may be removed (note 3)

NOTES:

1. Explanation of yes and no entries:
   a. "Yes" entries do not apply when candidates are eligible for noncompetitive promotion for any of the reasons shown in note 1, **Table 2.1**.
   b. "No" entries in this column do not prevent the use of competitive procedures when it is expected the promotion will extend beyond 120 days.
   c. "No" entries are changed to "Yes" when, at the completion of the temporary promotion, the employee will have spent more than 120 days on temporary promotions or details to higher grades posi-tions during the preceding year (not applicable to rule 3).
2. The total period of promotion may not exceed 5 years.
3. "No" entries in this column do not prevent removal of temporary limitation when conditions in **Table 2.6** are met.
4. Extension is subject to competition when the employee will have spent more than 120 days on temporary promotions and details to higher grade positions during the preceding year (not applicable to rule 3).

Table 2.6. Terminating Temporary Promotion and Placement of Employees

RULE	If the proposed placement is	Temporary promotion was initially for 1 year or pending permanent promotion and full competitive procedures were used (note 1)	employee is currently within reach under competitive procedures for permanent promotion	notification and documentation were properly followed at the time of temporary promotion (note 2)	Employee consent to the placement	these actions may be taken
1.	a. Permanent retention in position (note 2) b. Reassignment (without time limitation) to position of same grade	Yes	not required	N/A	not required	yes.
2.		No	Yes	N/A	N/A	no.
3.			No	N/A	N/A	
4.	Return to former position	N/A	N/A	yes	not required	yes.
5.	Change to lower graded position at same grade as former position	N/A	N/A	yes	not required	yes.
6.	Change to lower grade at intermediate grade	yes	not required	yes	yes (note 3)	yes.
7.		no	No	N/A	N/A	no.

RULE	If the proposed placement is	Temporary promotion was initially for 1 year or pending permanent promotion and full competitive procedures were used (note 1)	employee is currently within reach under competitive procedures for permanent promotion	notification and documentation were properly followed at the time of temporary promotion (note 2)	Employee consent to the placement	these actions may be taken
8.	Promotion (from grade held on temporary promotion)	N/A	yes	N/A	N/A	yes.
9.		N/A	no	N/A	N/A	no.

NOTES:

1. The conditions in this column are met only when:

   a. The temporary promotion was initially made for 1 year, or was made for a shorter period but it was known at the outset the temporary promotion could be converted to permanent (for example, at the completion of extended sick leave of an employee scheduled for disability retirement).

   b. Full competitive procedures were used, including application of the standard area of consideration and its extension when required; application of the provisions in paragraph **2.10** for mandatory selection of downgraded employees referred for competitive consideration; and notification to all eligible competitors that the temporary promotion could, or would, lead to permanent promotion without further competition.

2. Notification to employee not provided in advance of temporary action should be provided as soon as possible after promotion is made. Absent notification termination of temporary promotion may be subject to procedures covered under of 5 CFR 752.401.

3. If the reason for the temporary promotion ceases to exist and the conditions of rules 1, 2, or 3 are met, the promotion may be changed to permanent by removing the limitation according to the instructions in *The Guide to Processing Personnel Actions.*

Chapter 3

DEVELOPMENTAL OPPORTUNITY PROGRAM (DOP)

3.1. Air Force Policy. It is AF policy to design, administer, and support advancement opportuni-ties for lower-grade level civilian employees throughout the DoD. This program is designed to help them reach their full potential and productivity and to fulfill the AF mission. Employees with potential, but lacking qualifications, can be helped to become qualified for current or projected positions through competitive selection for mission-supportive job experience and job-related training and education. The guidance provided in this chapter is to be implemented in concert with the AF Regionalized Merit Promotion Program (MPP). This policy is carried out without regard to race, color, religion, sex, national origin, age, physical or mental disability, or other non-merit factor.

3.2. Background. The Government Employees Training Act (Chapter 41, Title 5, USC) is the legal basis for setting up training and educational programs to broaden opportunities for lower-grade level employees. The Equal Employment Opportunity (EEO) Act of 1972 (Public Law 92-261) requires agencies to set up training and educational programs needed to develop employees' KSAs so they may perform at their highest potential. In addition, Section 501 of the Rehabilitation Act of 1973 and the Vietnam Era Veterans Readjustment Assistance Act of 1974, requires the same opportunities be afforded to employees with disabilities and eligible Vietnam Era and disabled veterans.

3.3. Objectives. The goals of the DOP are established according to mission and organizational needs and they are as follows:

3.3.1. To provide the means by which the capabilities of participants are increased to the fullest extent possible.

3.3.2. To provide employees with an opportunity to enter bridge or career positions through planned on-the-job and formal training.

3.3.3. To increase employee morale.

3.4. Relationship with Affirmative Employment (AE). The DOP is an integral part of AE. It can be an appropriate vehicle for consideration of women, minorities, and people with disabilities into positions where underrepresentation exists.

3.5. General Responsibilities. The DOP requires the full commitment of commanders, functional man-agers, supervisors, civilian personnel officers, participants and others to ensure its success. Each strives to ensure the full use and upward progression of employees whose performance, work history, interest, assessed potential and education can be matched with developmental opportunities related to mission needs.

3.6. Responsibilities of Commanders:

3.6.1. Ensure the DOP implemented in conjuction with the MPP.

3.6.2. Ensure managers and supervisors are knowledgeable and trained.

3.6.3. Express support and commitment to the DOP.

3.6.4. Provide adequate resources based on availability of funds for the program including provisions for financial planning and budgeting.

3.7. Responsibilities of Functional Managers and Supervisors:

3.7.1. Identify positions which may be filled through the DOP while on line with the mission and needs of the installation.

3.7.2. Identify KSAs required at each step of the career ladder.

3.7.3. Restructure positions to increase developmental opportunities.

3.7.4. Counsel and encourage employees to apply for the DOP.

3.7.5. Identify cost-effective training needs.

3.7.6. Provide periodic evaluation of trainees' performance and progression.

3.7.7. Identify participants who are not satisfactorily progressing and discuss with the CPF appropriate action to be taken.

3.8. Responsibilities of the Civilian Personnel Officer or Designee:

3.8.1. Design and implement the program.

3.8.2. Serve as coordinator of the program.

3.8.3. Assist functional managers and supervisors to identify positions to be filled through the DOP.

3.8.4. Publicize programs.

3.8.5. Counsel employees.

3.8.6. Develop and implement appropriate selection procedures.

3.9. Eligibility. Applies to all US citizen employees at GS-1 through GS-8 and WG-1 through WG-7 who are not serving under a time-limited appointment or on a position targeted to GS-9 or above. Employees serving under excepted appointing authorities may be selected only if appointment to the target position can be made under the same appointing authority or if the appointing authority provides for conversion into competitive appointments.

3.10. Identification of Positions. The identification of appropriate target positions is critical to the success of the program. To identify possible target positions suitable for developmental opportunity consider-ation, it may be necessary to analyze the skills of current employees, review current and anticipated position vacancies, and determine which positions lend themselves to restructuring.

3.10.1. Not every position that can be restructured need be included in the DOP. Determination of inclusion in the DOP is made by the supervisor on a continuing basis as vacancies become available.

3.10.2. Once target positions, specific positions for which the employee is being trained, have been identified, the normal line of progression or career ladders should be established. Target positions should be restructured to the entry or intermediate grade levels with an identified final target position.

3.10.3. Target positions are normally classified as either career or bridge positions. Career positions are either positions which extend to GS-9 or above (usually two-grade interval series) or WG positions with journeyman grades of WG-8 or above; while bridge positions are lead-ins or provide qualifying experience for the career positions. Developmental opportunity usually encompasses movement from support positions, those positions which normally do not provide the possibility for advancement to the GS-9 or above or WG-8 or above level or the experience needed to progress to other positions, into bridge or career positions or movement from bridge positions into career positions.

3.11. Implementation.

3.11.1. Selection for placement into a developmental opportunity position is accomplished through competitive methods as required by AFPD 36-2 and the MPP. Individuals may be selected for competitive promotions, reassignments, or changes-to-lower-grade. Candidates are identified through self nomination under a vacancy annoucement in conjunction with any number of competitive methods: job analysis followed by self-assessment, panel interviews, assessment centers or other job-related performance exercises; or any combination of methods, e.g., locally devel-oped self-evaluation criteria. The job analysis provides the basis for any other assessment tool used for indentification and selection of candidates.

3.11.2. Candidates must meet basic eligibility requirements, unless training agreements are utilized or competitive reassignments as authorized under the general amendment to qualification standards. Any minimum education, license, or certification requirements must be met and cannot be waived. The area of consideration may be limited to major organizational entities (e.g., laboratories, centers, directorates, etc.) according to the MPP.

3.11.3. Employees selected for positions identified for inclusion in the DOP are entitled to pay retention in accordance with governing OPM regulations.

3.12. Training Agreements. Training agreements are required when intensive training is used as a sub-stitute for normal qualification standard requirements. Based on the delegation in authority by OPM and DoD, bases will develop DOP training agreements including waivers of qualification requirements, including time-in-grade, and/or one accelerated promotion. All agreements are submitted to and approved by the installation commander or designee and are reviewed at least annually. The training agreements must describe:

Reason for agreement.

Positions to be covered.

Selection procedures.

Length of training.

General training plan.

Flexibility provision for the length and intensity of training.

3.13. Formal Training Plan. A formal training plan is required for each employee on a training agree-ment. In all other cases, a formal training plan may be used. The plan delineates the training and devel-opmental activities required to qualify for the target position. The plan should include the following:

3.13.1. The KSAs needed for successful performance in the target position.

3.13.2. Objectives related to the KSAs.

3.13.3. Specific training and developmental activities needed to meet objectives.

3.13.4. Flexibility provision for the length and intensity of training.

3.13.5. Target dates for completion of objectives. Provisions for periodic evaluations.

3.14. Counseling. The CPF, in addition to supervisors, is responsible for providing comprehensive counseling to assist employees in identifying their career goals, qualifications, and match these with organizational needs and developmental opportunities. Counseling may be accomplished by the servicing employee development specialist, affirmative employment specialist, or individuals knowledgeable about staffing procedures and the MPP.

Chapter 4

MILITARY SPOUSE PREFERENCE PROGRAM

4.1. Authority. The authority for military spouse preference is Public Law (PL) 99-145, as amended by PL 99-661 and PL 100-180 (10 USC, Section 133 Note). This chapter implements *DoD Instruction 1404.12, Employment of Spouses of Active Duty Military Members Stationed Worldwide*. Air Force policy and procedures for military spouse preference employment in nonappropriated fund (NAF) positions are addressed according to *Air Force Instruction 34-310, Nonappropriated Fund Personnel Program Management and Administration Procedures*. This chapter does not apply to the filling of AF Reserve or Air National Guard Technician positions.

4.1.1. **(Added-USAFE)** MSP program is administered using USAFE Staffing Framework.

4.2. Military Spouse Preference Eligible. Eligibility for military spouse preference is not warranted to the dual military couples where one spouse is discharged and desires to seek civil service employment at the current duty station. Eligibility as a military spouse preference applicant may be established if one of the following conditions is met:

4.2.1. A military spouse who entered into marriage with the military member prior to relocating because of service under a statutory tour. Eligibility for preference does not extend to the military spouse unless marriage took place prior to the relocation of the military member to the new duty station area.

4.2.2. DELETED.

4.2.3. Is a spouse of a new recruit to active duty in the Armed Forces relocating to a new and permanent duty station after completing basic and advanced individual training at one or several temporary duty stations.

4.2.4. Is a spouse of a new recruit who has received a permanent assignment at the same duty station where all of the initial entry training was received.

4.2.5. Is a spouse of a former military member placed directly within the permanent unit of assignment without undergoing initial entry training.

4.2.6. Is a spouse of a member of the National Guard who has been called to active duty under the provisions of Title 10. In this instance, military spouse preference applies only if the spouse has relocated as a result of the activation of the National Guard military member sponsor under Title 10.

4.3. Applicability of Military Spouse Preference. The following are instances in which military spouse preference is not applicable:

4.3.1. Positions in the National Security Agency (NSA), the Defense Intelligence Agency (DIA), or other organizations in the DoD Components that have a primary function of intelligence, counterintelligence, or national security, including Defense Civilian Intelligence Personnel System (DCIPS) positions.

4.3.2. Professional educator positions with the Department of Defense Dependent Schools (DoDDS). Spouse applicants for DoDDS educator positions with this system are given preference according to DoD Directive 1400.14*, Salaries and Personnel Practices*

Applicable to Teachers and Other Employees of the DoD Overseas Dependents' Schools System.

4.3.3. Full performance level competitive or excepted service positions covered by mandatory mobility agreements.

4.3.4. IAW the PPP Operations Manual, Chapter 14(f)(2), fill actions when such actions would adversely impact ongoing affirmative employment Equal Employment Opportunity (EEO) programs; that is, when programs for achievement of minority and gender equality, programs for persons with disabilities, or programs for affirmative employment of veterans, including disabled veteran appointments and Veteran Readjustment Act Appointments (VRA) would be adversely affected.

4.3.5. Situations involving statutory or regulatory entitlements; that is, placement entitlements stemming from reemployment rights, grade retention rights, or rights conferred by court and administrative decisions.

4.3.6. Filling of positions when statutes or regulations on veterans preference or nepotism would be violated.

4.3.7. Filling of positions when a placement would result in the displacement of a current employee of the activity (i.e., conversion to career conditional of VRA).

4.3.8. Filling of positions when placement of a military spouse would prevent placement of an overseas returnee registrant of the DoD PPP or a PPP Priority 1 or 2 registrant.

4.3.9. A sponsor's move when the move is a PCS that is in conjunction with retirement or separation.

4.3.10. At the new duty location, when a military spouse is placed on either a DoD appropriated or NAF position, whether or not preference was applied.

4.3.10.1. **(Added-USAFE)** IAW DoD Memo, 1 December 2004, preference is only used for NAF if employee is selected and working in position designated as "regular" NAF position.

4.3.11. DoD employment following non-DoD Federal agency employment in a continuing position at the new duty location.

4.4. Scope.

4.4.1. Worldwide for spouses of active duty military members of the US Armed Forces applying and referred for certain appropriated fund positions in the excepted and competitive services in the DoD Components for all GS and FWS positions.

4.4.2. Reciprocally across DoD Component lines for positions in the same commuting area as that of the new duty station of the military member sponsor.

4.4.3. Spouses eligible for preference should be included as a part of minimum consideration areas in the competitive placement process. Generally, the minimum consideration area will include all military spouses eligible for noncompetitive appointment in the competitive service.

4.4.4. Placement of military spouses through this registration does not entitle the spouse to relocation expenses under the DoD JTR or retained grade or pay, unless otherwise entitled.

4.5. Employment Information and Assistance. Employment information and assistance will be made available for spouses seeking employment. This includes information provided as a part of a coordinated effort with the Individual Newcomer Treatment and Orientation (INTRO) program staff members and with the Family Support Center spouse employment assistance section. As a minimum, lists of currently established positions should be readily available for review by spouses as an indicator of employment possibilities or recruiting requirements. Applications from eligible military spouse preference candidates must be submitted to and accepted at the CPF based on current and projected position vacancies.

4.5.1. **(Added-USAFE)** Replaces the original input with the following. Employment information and assistance will be made available for spouses seeking employment. This includes information provided as a part of a coordinated effort with the Airman and Family Readiness Center Newcomer Orientation programs, staff members, and with the Airman and Family Readiness Center employment assistance section. All military spouses in the USAFE theater are considered external applicants and must apply via automated system.

4.6. Claim for Preference. The CPF must advise the military spouse of the entitlement to claim spouse preference for DoD established positions. Military spouses must be advised of various application procedures and encouraged to apply under all appropriate options. In advising the military spouse, the following information should be conveyed so that there is no doubt as to the intent of the program:

4.6.1. Spouse preference shall be limited to the specific position(s) for which applied.

4.6.2. Spouse employment preference may be exercised once for each permanent relocation of the sponsor to an active duty location.

4.6.3. Declination of a continuing position for which the spouse has requested preference will serve to remove a claim for preference for DoD positions in the commuting area of the sponsor's duty location.

4.6.4. Military spouse preference applies when the spouse has been determined to be among the "best qualified" for the position to which referred.

4.6.5. Except for those military spouses reached for placement under Direct Hire Authority or from an OPM register, including OPM registers maintained under a DEU or Specialized Examining Unit (SEU) provisions, military spouses may be considered as preference eligible only if the grade of the position to which referred is no higher than a grade previously held on a permanent basis.

4.6.6. Military spouses may be considered concurrently for a number of positions. For example, the military spouse on LWOP may be eligible for competitive promotion consideration, and may also be eligible as a spouse preference candidate for a grade no higher than previously held on a permanent basis.

4.6.7. The military spouse should be advised to claim preference according to personal employment eligibility as follows:

4.6.7.1. Eligible AF employed military spouses, spouses employed by other Federal agencies, spouses with competitive service reinstatement eligibility and spouses eligible for appointment under E.O. 12721, *Eligibility Of Overseas Employees For Noncompetitive Appointments*, desiring consideration at new AF location or other DoD

activities will claim preference through the procedures established in *DoD 1400.20-1-M, Department of Defense Program for Stability of Civilian Employment*, Appendix F (Program "S"). Eligibles include current Federally employed spouses, spouses with competitive service reinstate-ment eligibility, and spouses eligible for appointment under E.O. 12721. Required documentation may include an up-to-date employment application, a copy of the military sponsor's PCS orders, and documentation confirming appointment eligibility.

4.6.7.2. Military spouses without civil service status and without eligibility under E.O. 12721 may also exercise military spouse preference. An available veteran may not be passed over to select a nonveteran, nor may an available military spouse preference eligible be passed over to select a nonspouse preference eligible. Military spouses should be advised of the following:

4.6.7.2.1. If certification will be from an OPM register, from an OPM SEU or DEU register, or under Direct Hire Authority, the military spouse must notify and present proof of appointment and preference eligibility to the CPF. A copy of an up-to-date employment application, a notice of rating, and the military sponsor's PCS orders confirming relocation to the new active duty station, are the basic documentation necessary to enable the military spouse preference determination.

4.6.7.2.2. In foreign areas, the employment of spouses is governed by DoD Instruction 1404.12, *Employment of Spouses of Active Duty Military Members Stationed Worldwide,* January 12, 1989, and DoD Instruction 1400.23, *Employment of Family Members of Active Duty Military Members and Civilian Employes Stationed in Foreign Areas,* May 12, 1989. Spouses may exercise preference through local Applicant Supply File (ASF) procedures as a competitive service eligible or a 5 CFR 213.3106(b)(6) Schedule A appointee. The spouse must notify the CPF of his or her intent to claim spouse preference when applying under the appropriate vacancy announcement through internal self-nomination process or established application procedures as they apply to non-AF candidates. Overseas commands may establish procedures including documentation requirements to facilitate the consideration of spouse preference candidates. Spouse preference may be exercised no more than one time per permanent relocation of the sponsor.

4.6.7.2.2. **(USAFE)** Replaces the original input with the following. In foreign areas, the employment of spouses is governed by DoD Instruction 1404.12, *Employment of Spouses of Active Duty Military Members Stationed Worldwide,* January 12, 1989, and DoD Instruction 1400.23, *Employment of Family Members of Active Duty Military Members and Civilian Employes Stationed in Foreign Areas,* May 12, 1989. Overseas commands may establish procedures including documentation requirements to facilitate the consideration of spouse preference candidates. Spouse preference may be exercised no more than one time per permanent relocation of the sponsor.

4.6.7.2.2.1. **(Added-USAFE)** Spouses exercise preference by self-nominating for vacancies via OPM USAJOBS.

4.7. Preference Determinations. CPFs have the overall responsibility for making preference determinations as follows:

4.7.1. Verification of Spouse Status**.** Military spouses who entered into marriage prior to relocating to the sponsor's new active duty location must be identified as the spouse of a military member relocating under a statutory tour. For those military spouses who acquire command sponsorship accord-ing to the provisions of paragraph **4.2.2**, a copy of the local Commander's approving statement, in addition to a copy of the military member sponsor's PCS orders, will serve to verify the status of the spouse preference candidate.

4.7.1. **(USAFE)** Reference to 4.2.2 was removed due to AFMAN 36-203 update 8 June 2006. Subsequent references are also deleted. Replaces original input with the following. Verification of Spouse Status**.** Military spouses who entered into marriage prior to relocating to the sponsor's new active duty location must be identified as the spouse of a military member relocating under a statutory tour. For USAFE, AFPC, and if required, CPS have overall responsibility for making spouse preference determinations.

4.7.2. Time Period of Preference**.**

4.7.2.1. In the United States, Guam, Puerto Rico, and other Territories and Possessions of the US, the time period of military spouse preference eligibility begins 30 days before the military sponsor's reporting date to the new location, and applies without time restriction, except that spouses seeking preference with less than six months time remaining in the area will not be given military spouse preference.

4.7.2.2. For foreign areas, the military spouse preference candidate may file an application for employment 30 days before anticipated arrival; however, spouses may not receive preference until actually reporting to the foreign area CPF. Spouses seeking preference with less than six months time remaining in the overseas area will not be given military spouse preference.

4.7.3. Employment Eligibility**.** The military spouse must be eligible for employment according to **4.6.7** of this chapter.

4.7.4. Qualification Determination**.** The military spouse preference eligible must meet the minimum qualification standards and other basic eligibility criteria and must have been determined to be within the best qualified group before being referred as a military spouse preference eligible.

4.8. Documenting Preference. Initial preference determination will be annotated on the application form. When the military spouse is employed based on spouse preference, the Standard Form (SF) 50**, Notification of Personnel Action,** will cite the second authority code and authority according to the OPM *Guide to Processing Personnel Actions* at **http://www.opm.gov/feddata/gppa/gppa.htm**.

4.9. Applying Preference.

4.9.1. Noncompetitive Referrals**.** Noncompetitive selections and placements may be made without application of military spouse preference; that is, reassignment, change-to-lower-grade, transfer (reassignment and change-to-lower-grade), noncompetitive repromotion, placement to RPL entitlement or OPM Interagency Placement Program (IPP) requirement, and placement to satisfy ongoing EEO programs according to paragraph **4.3.4**.

4.9.2. Application Procedures**.** Positions filled through open competition must be listed and applications must be accepted from military spouse preference applicants. A spouse preference candidate must apply for consideration by the closing date of the announcement.

4.9.3. Competitive Referrals**.** When competitive procedures are used and the position will be filled through open competition, military spouses eligible for appointment or assignment who have been determined to be military spouse preference eligibles must be considered.

4.9.4. Targeted Positions**.** When filling targeted positions, the preference applies at the permanent target grade of the position to be filled. When application is based on prior civil service employment eligibility, the target grade must be no higher than the highest grade previously held in the Federal service.

4.9.5. Applicant Rating and Referral**.** The military spouse preference eligible is rated in relation to competitive candidates for the position. Military spouse preference eligibles who rank equal to or higher than the lowest ranking referable candidate are considered to be in the best qualified group. If the spouse is among the best qualified, he or she will be referred to the selecting supervisor in advance of other competitive candidates. If selection is to be made from the competitive recruitment source, a referred military spouse preference eligible must be selected. If the CPF is unable to contact the spouse after reasonable attempts to verify availability, the spouse may be nonselected and the certificate must be documented accordingly. If more than one spouse preference candidate is in the best qualified group, the selecting official may select any of the spouse preference candidates.

4.9.6. Career Program Positions**.** When qualified non-AF spouse preference eligibles apply for positions covered by career programs, a copy of the military spouse's application which has been evaluated according to qualifying series and skills along with the most recent appraisal, will be sent to the appropri-ate career program PALACE Team at the Air Force Force Personnel Center Civilian Career Management Directorate accompanying the request for the certificate of eligibles. CPFs must notify the Air Force Force Personnel Center Civilian Career Management Directorate of the availability of a currently employed AF military spouse preference eligible and forward a copy of the preference eligible's placement and experience history brief. The AF military spouse does not have to be registered in the career program to receive preference (see *Air Force Manual 36-606, Air Force Civilian Career Management*, Chapter 1, Section 1.18.1.1.).

4.9.6.1. **(Added-USAFE)** All military spouses receive consideration via application process in USAJOBS.

4.10. Exception to Spouse Preference. Exceptions may be made to the selection of a military spouse preference eligible. The authority to approve such an exception is delegated to the Commander to whom the appointing authority is delegated at the location where application is made. That authority may be redelegated to the CPFs. An exception should be rare and based only on compelling hardship to the mission or to the non-spouse preference applicant.

4.10.1. **(Added-USAFE)** Exceptions to family member preference will follow the same criteria/procedures

4.11. Spouse Preference Registrations and Documentation Requirements. The losing and gaining CPFs are jointly responsible for PPP Program "S" or the DCPDS category M1 (if AF) special placement registration of the military spouse. The registering CPF and the CPF

performing the file maintenance, if different, must retain the following documentation on each military spouse preference candidate:

4.11.1. An employment application or AF Employee Brief and CPDSS transactions (for those military spouses who want AF to AF consideration only).

4.11.2. A copy of the most recent appraisal.

4.11.3. A copy of the official PCS orders authorizing the preference eligible spouse to relocate with the military member sponsor under a statutory active duty tour.

4.11.4. Registration/File Maintenance Format, or a printout of the E2.11.3_ if expansion of the area of consideration could result in a PCS, the gaining organization must certify that funds are available prior to the expansion of the area of consideration. Job announcements will indicate that PCS funds will or will not be available. For career program covered positions, refer to AFMAN 36-606, Vol 1.

4.11.5. Any other documentation necessary to support a claim for military spouse preference. The registration record must be retained for a two-year period following deletion as a military spouse preference eligible for that duty location assignment.

4.11.6. **(Added-USAFE)** USAFE applies Spouse Preference via application to specific job announcements and in accordance with USAFE Staffing Framework. USAFE does not use ASARS automated system for application of spouse preference.

Chapter 5

EMPLOYMENT OF EXPERTS AND CONSULTANTS

5.1. Authority. Policies and procedures for requesting, approving and employing experts and consultants in AF by appointment with or without compensation are based on 5 USC 3109 and DoD Directive 4205.2, *DoD Acquiring and Managing Contracted Advisory and Assistance Services (CAAS).*

5.2. Employment of Experts and Consultants Mission Statement. The use of experts and consultants is a means of availing the AF of temporary and intermittent services of highly specialized individuals to accomplish mission requirements which cannot be obtained from in-house personnel or by other appointments. The authority can be revoked for misuse.

5.2.1. Employment of Consultants**.** When essential to the mission, services of a consultant may be obtained to secure specialized opinions or professional or technical advice that does not exist or is not available within the AF or DoD; outside points of view to avoid a limited judgment of critical issues; knowledge of developments in industry, university, or foundation research; opinion of noted experts whose national or international prestige can contribute to the success of important projects; or citizen advisory participation in developing or implementing government programs that, by their nature or statutory provision, call for such participation. A consultant is assigned to operational activ-ities only in rare and unusual cases when this is the only way he or she can obtain information needed to formulate specific advice or recommendations.

5.2.2. Employment of Experts**.** When essential to the mission, services of an expert may be obtained when expertise does not exist or is not available to perform work of a specialized nature. These services may be obtained for a temporary or intermittent period. An expert performs the intermittent or temporary work in an operational activity which may include some advisory services. An expert possesses superior qualifications and a high degree of attainment and standing in a professional, scientific, technical, or other field. His or her attainment is such that he or she usually is regarded as an authority or as a practitioner of unusual competence and skill by other persons in the profession, occupation, or activity.

5.3. Authority to Employ Experts and Consultants by Appointment. All appointments and reap-pointments must be approved by the Office of the Secretary of Defense. Requests must be submitted through MAJCOM channels to HQ USAF/DPPH for processing.

5.4. Conditions of Employment. Appointments are limited to the specific period for which the need for the employee's services exist. They cannot extend beyond 365 calendar days (a service year) from the date of the initial appointment. New appointments may be made at the expiration of 365 calendar days. Appointments initially made less than 365 calendar days may be extended to the end of that period.

5.4.1. Actual Workdays. The maximum number of workdays which may be authorized within 365 consecutive calendar days by initial appointment or reappointment is 130. If less than 130 workdays is initially authorized, additional workdays may be authorized by extending the initial appointment. If appointment is extended beyond 130 workdays, the employment becomes temporary.

5.4.2. Compensation Granted**.** Compensation for experts and consultants cannot exceed the daily rate for the maximum payable rate of GS-15. The rate of compensation is set by the selecting official with assistance from the servicing CPF. The rate of compensation is based on: the value and importance of the services performed; the person's experience and attainments; and the rate of compensation that may be set on a hourly or daily basis as a precondition of employment. If a daily rate is established, the expert or consultant is paid that rate regardless of the number of hours worked during the day. If an hourly rate is established, the expert or consultant is paid only for the hours worked; however, the actual compensation paid cannot exceed the maximum authorized daily rate. Overtime, night differential, holiday, or premium pay benefits are not applicable to experts or consultants.

5.4.3. Without Compensation**.** An expert or consultant may be employed without compensation. Each such expert or consultant must sign a waiver of compensation to protect the Government against future claims for services rendered. A waiver must be executed before the services are rendered. A waiver is kept as a permanent record in the OPF.

5.4.4. Security Requirements**.** An expert or consultant is subject to the investigative and clearance requirements of DoD 5200.2, *DoD Personnel Security Program* and AFI 31-501, *Personnel Security Program Management.*

5.5. Concurrent Use of Expert or Consultant by Air Force Activities. The services of an expert or consultant may be needed and used by several AF activities. An AF activity may use the services of an expert or consultant of another activity without making a new appointment as long as the nature of the duties performed, the compensation to be paid, and the conditions of the employment are similar. In these circumstances arrangements may be made with the appointing AF activity so that the additional service is reflected in the person's appointment documents and records of service rendered, and the funds for compensation paid can be transferred between activities.

5.6. Responsibilities. The Director of Personnel Force Management, HQ USAF/DPP, and the Directors of Civilian Personnel at major command level are responsible for assuring all requests meet the requirements of 5 USC 3109. Installation commanders with appointing authority are responsible for providing leadership in the establishment and enforcement of AF policies.

5.7. Employment Procedures . At the time of the initial appointment the selecting official: determines the need and propriety of using the expert's or consultant's services and accomplishes DD Form 2292, Request For Appointment or Renewal of Appointment of Consultant or Expert; prepares a RPA; prepares a detailed statement of work, indicating that the appointee will only be assigned the duties for which the appointment is made (information must be described in enough detail to determine that establishing a regular civil service position is not practical); obtains a resume or employment application, Personal Qualification Statement (or equivalent employment application); furnishes a description of the circumstances substantiating impossiblility or impracticability to obtain equally qualified applicants through other methods such as detail, promotion, reassignment of personnel (civilian or military) within the organization or activity concerned or recruitment under civil service procedures; provides a statement of employment and financial interests and other determinations required by DoD 5500.7, *Joint Ethics Regulation*, such as DD Form 1787, "Report of DoD and Defense Related Employment," SF 450/OGE 450, "*Confidential Financial Disclosure Report"* and SF 278, "Public Financial Disclosure Report," January 1991; submits the request along with the SF 450/OGE 450 and SF

278, DD Forms 1787 and 2292, to the appropriate manpower, budget, and legal offices for determinations as required by DoD 5500.7, ***Standards of Conduct*** , before sending the RPA and accompanying documentation to the CPF.

5.8. Recording Days of Work. The selecting official maintains a current record of the days and hours worked by each expert or consultant so this information can be provided to the CPF when the employee terminates. This is not required if payroll records provide this information.

5.9. Termination of Appointments. When the work of an expert or consultant is completed, the selecting official immediately requests termination of the appointment on the RPA. Offices using such services must make sure that the appointee does not work more than the total number of days authorized by the appointment. Before the appointment expires, the management official determines whether to terminate the appointment or to request an extension or reappointment. Request for reappointment should be sub-mitted to HQ USAF/DPP at least 120 days prior to expiration of appointment.

5.10. Annual Communication Requirement. 5 CFR Part 304 requires that agencies comply with the statutory requirements of 5 USC 3109 and guard against violations and inappropriate use of the appoint-ing authority. HQ USAF/DPP will communicate this caution at least annually through electronic mail, or memorandum. Public Law 102-378 amended 5 USC 3109 to require each agency to report to OPM annually on the number of days worked and the amount paid to each expert or consultant. DCPDS is used to generate supporting data for the management of the employment of experts and consultants program, whenever possible.

Chapter 6

EMPLOYING RETIRED MEMBERS OF THE ARMED SERVICES

6.1. Authorities. This chapter implements DoD Directive 1402.1, *Employment of Retired Members of the Armed Forces as amended by ASD/CPP 31 Aug 2000 interim change and SAF/MI memo 12 Oct 2000.* In accordance with provisions of that directive the following officials are designated to approve appointments of retired members of the Armed Forces during the 180 days after retirement:

6.1.1. Each MAJCOM Director of Civilian Personnel is designated to act for the Secretary of the AF on proposed appointments or transfers to appropriated fund positions. Where there is no Major Command, this authority is delegated to a level no lower than one level above the appointing official. The Director of Personnel Force Management, HQ USAF/DPP is designated to act for the Secretary of the AF on proposed appointments or transfers to all other appropriated fund positions.

6.2. Requests for Approval.

6.2.1. Requests must provide all of the following information in sequential order. The required enclosures must be provided together with additional enclosures that may be appropriate to support the waiver request. All enclosures must be legible.

6.2.1.1. Information About Proposed Appointee**.**

The effective date (YYMMDD) of the retirement from the Armed Forces.

Rank at time of retirement.

Pay grade and Uniformed Service, at the time of retirement; whether regular or nonregular.

A current resume or employment application completed by the proposed appointee.

6.2.1.2. Information About the Position Involved**.**

Date (YYMMDD) the position was established.

Date (YYMMDD) it was last occupied.

Whether the position was converted from military to civilian status.

Date (YYMMDD) of conversion (if converted).

Reason for conversion.

Whether the proposed appointee was the last military occupant.

A current position description.

Whether the position is continuing or temporary.

A copy of the qualification standard(s) covering the position. (Reference may be made to the applicable OPM Qualifications Operating Manual, when being applied without modification.)

Whether efforts to fill the position have been continuous since it became vacant; if not, the reasons therefor.

6.2.1.3. Consideration of Agency Career Employees**.** To ensure that full consideration, in accordance with placement and promotion procedures, was given to eligible career employees, the following information shall be included:

6.2.1.3.1. A copy of any notices used to publicize the vacancy to interested career employees.

6.2.1.3.2. Identify how the proposed appointee is better qualified than all persons given consideration; provide a comparative analysis of the qualification of the three best qualified candidates for the position; include copies of the resume or employment application, or career brief.

6.2.1.3.3. A statement as to whether the applicable placement and promotion procedures were followed; if these procedures were not followed, the reasons therefor.

6.2.1.3.4. A copy of the certificate, register, or list of eligibles referred to the selecting official for consideration.

6.2.1.4. Appointment Resulting From Competitive Examining**.** When the proposed appointee has eligibility resulting from competitive examining and has been reached for appointment, the following additional information will be provided:

6.2.1.4.1. A copy of the certificate of eligibles on which the proposed appointee's name appears. The examination announcement under which the proposed appointee filed shall be identified if it is not included on the certificate itself.

6.2.1.4.2. A copy of the request for certificate, including selective placement factors and names of nominees if selective certification or name request was involved. If name requested, state the reason(s) for using a name-request.

6.2.1.4.3. A statement as to how the proposed appointee is superior to any eligibles standing higher on the certificate and a comparison with the top two.

6.2.1.5. Appointment Resulting From Other Than Competitive Examining**.** When it is proposed to appoint a retired member resulting from other than competitive examining, the following additional information shall be provided:

6.2.1.5.1. The authority (OPM Regulation) under which the retired member will be appointed.

6.2.1.5.2. If temporary appointment pending the establishment of a register authority has been secured, a copy of the request for a certificate of eligibles, including selective factors and a copy of the authority.

6.2.1.5.3. If any positive recruiting efforts were made to seek out applicants for the position, the methods used (specific dates and places), copies of any notices publicizing the vacancy, and any contacts with recruiting sources.

6.2.2. Requests must be self-contained so that reviewing officials can easily understand without cross-referencing with the specific provisions of this chapter.

6.3. Where to Submit Requests. Submit requests for approval to the proper designee outlined in paragraph **6.1**. Requests that require the approval of HQ USAF/DPP must be sent through servicing MAJCOM/DPC to the Civilian Policy Division, HQ USAF/DPPH.

6.4. Maintaining Data at MAJCOM and Installation Level.

6.4.1. MAJCOM/DPCs and/or CPFs maintain a record of all requests that are approved or disapproved at that level. Where there is no MAJCOM, requesting office maintains a record of all requests requiring Headquarters approval. These records must be disposed of according to AFMAN 37-139, *Disposition of Air Force Records - Records Disposition Schedule.*

6.4.2. Approval requests and supporting documents, if any, are made a part of the application that was the basis for the appointment. They become a part of the permanent personnel record of the individual concerned.

6.5. Information Requirements. If needed for a report, statistical data of retired members of the Armed Forces that have been appointed to civilian positions may be obtained from the DCPDS.

Chapter 7

EMPLOYMENT OF FOREIGN NATIONALS IN FOREIGN AREAS

7.1. Authority. This chapter establishes command responsibilities for arrangements with foreign govern-ments on the employment and administration of national personnel of host countries. It implements DoD 1400.25-M, *Department of Defense Civilian Personnel Manual,* Subchapter 1231.

7.2. MAJCOM Responsibility.

7.2.1. Each MAJCOM activities in foreign areas furnishes instructions to lower ech-elons to ensure the identification and referral for command guidance of:

7.2.1.1. Operating problems arising under existing agreements or arrangements, or problems requiring the negotiation of agreements or arrangements, or major developments deserving higher level attention. Additionally, they refer matters regarding unresolved differences relating to salaries, benefits, etc. Issues warranting deviation from prevailing practice(s); and other unresolved differences having significant budgetary or legal implications to HQ USAF/DPP.

7.2.1.2. Matters of policy or law requiring clarification by HQ USAF/DPP.

7.2.2. Each MAJCOM, if serving as AF component commander in a unified command for a foreign area:

7.2.2.1. Supplies advice or recommends action to the unified command responsible for the foreign area concerned.

7.2.2.2. Designates management personnel familiar with foreign national personnel administration to represent the AF in developing, coordinating, and participating (if appropriate) in negotiating agreements or arrangements. If qualified personnel are not available locally, the command furnishes assistance from command level. Utmost care must be excercised carrying out this responsibility due to the impact of such negotiations on our relationships with foreign governments and on our ability to perform assigned missions.

ROGER A. BRADY, Lt General, USAF
DCS/Personnel

(USAFE)

CHRISTOPHER C. SHARPE, Colonel, USAF
Director, Manpower, Personnel, and Services

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

FORMS ADOPTED

AF Form 971, *Supervisor's Employee Brief*; AF Form 860A, *Civilian Rating of Record*; DD Form 1787, *Report of DoD and Defense Related Employment*; DD Form 2292, Request for Appointment or Renewal of Appointment of Consultant or Expert; SF 278, "Public Financial Disclosure Report"; SF 450/OGE 450, "*Confidential Financial Disclosure Report"*; SF 50 Notification of Personnel Action.

References

AFI 31-501, *Personnel Security Program Management.*

AFI 36-601, *Air Force Civilian Career Program Management*

AFI 36-802, *Pay Setting*

AFI 36-901, *Air Force Senior Executive Resources (PA)*

AFI 36-1001, *Managing the Civilian Performance Program*

AFI 36-1201, *Discrimination Complaints*

AFI 36-2024, *Staffing Civilian Positions*

AFMAN 34-310, *Nonappropriated Fund Personnel Program Management and Administration Procedures*

AFMAN 36-606, Volume 1, *Air Force Civilian Career Program Management*

AFMAN 36-606, Volume 2, *Air Force Civilian Career Planning*

AFMAN 37-139, *Records Disposition Schedule*

AFPD 36-2, *Employment and Affirmative Action*

AFPD 36-6, *Civilian Career Management*

DoD Directive 1315.7*, Military Personnel Assignments*

DoD Directive 1400.13*, Salaries and Personnel Practices Applicable to Teachers and Other Employees of the DoD Overseas Dependents' Schools System*

DoD Directive 1400.25, Chapter 1200, 1231, *Department of Defense Civilian Personnel Manual (CPM) (Employment of Foreign Nationals)*

DoD Directive 1402.1, *Employment of Retired Members of the Armed Forces*

DoD Directive 4205.2, *DoD Acquiring and Managing Contracted Advisory and Assistance Services (CAAS)*

DoD Directive 5200.2, *DoD Personnel Security Program*

DoD Directive 5500.7, *Joint Ethics Regulation*

DoD Instruction 1400.23, *Employment of Family Members of Active Duty Military Members and Civilian Employees Stationed in Foreign Areas*

DoD Instruction 1404.12, *Employment of Spouses of Active Duty Military Members Stationed Worldwide*

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Equal Employment Opportunity Act of 1972 (Public Law 92-261)

E.O. 12721, *Eligibility Of Overseas Employees For Noncompetitive Appointments*

OPM Qualifications Operating Manual

Public Law (PL) 99-145, as amended by PL 99-661 and PL 100-180 (10 USC, Section 133 Note)

5 Code of Federal Regulations (CFR)

29 Code of Federal Regulations (CFR)

Title 5 United States Code (USC), Section 3109

Abbreviations and Acronyms

AFPC—Air Force Personnel Center

AFRC—Air Force Reserve Command

ART—Air Reserve Technician

ASF—Applicant Supply File

CAAS—Contracted Advisory and Assistance Services

CANS—Civilian Announcement Notification System

CPD—Core Personnel Document

CPDSS—Civilian Personnel Decision Support System

CPF—Civilian Personnel Flight

DCIPS—Defense Civilian Intelligence Personnel System

DCPDS—Defense Civilian Personnel Data System

DEU—Delegated Examining Unit

DoD—Department of Defense

EEO—Equal Employment Opportunity

FEORP—Federal Equal Employment Opportunity Program

FWS—Federal Wage System

GS—General Schedule

INTRO—Individual Newcomer Treatment and Orientation

IPP—Interagency Placement Program

IVRS—Interactive Voice Response System

JA—Job Analysis

JTR—Joint Travel Regulations

KSA—Knowledge, Skills, and Abilities

LWOP—Leave without Pay

MAJCOM—Major Command

MJR—Major Job Requirement

MPF—Military Personnel Flight

MPP—Merit Promotion Plan

NTE—Not to Exceed

OPF—Official Personnel File

OPM—Office of Personnel Management

PCS—Permanent Change of Station

PPP—Priority Placement Program

RIF—Reduction in Force

RPA—Request for Personnel Action

RPL—Reemployment Priority List

SCD—Service Computation Date

SES—Senior Executive Service

SEU—Special Examining Unit

SME—Subject Matter Expert

ST—Scientific and Professional Positions

STAIRS—Standard Automated Inventory and Referral System

TDY—Temporary Duty Travel

TOF—Transfer of Function

VRA—Veterans Readjustment Act

VEOA—Veterans' Employment Opportunity Act

Terms

Affirmative Employment Program Plan (AEPP)—An annual employment plan providing general assessment of employment conditions, addressing such information as projected vacant positions; affirmative action and FEORP goals for the next year and long range; recruitment sources likely to provide adequate candidates for the type of goals established, etc.

Ability—Demonstrated competency to perform an activity supported by experience, education, or training and not to be confused with "potential."

Area of Consideration—The areas designed by the local merit promotion plan in which the CPF should reasonably expect to locate enough quality candidates, as determined by the CPF, to fill vacancies in the positions covered by the plan.

Career Program—A program designed to administer an occupation or cluster of occupations; includes work force analysis, forecasting and planning, and the systematic selection, development, assessment, and use of employees registered in the career program.

Certificate—A listing of ranked candidates referred, in alphabetical order, to the selecting official for consideration for a position.

Change to Lower Grade—The change of an employee to a lower grade when both the old and new positions are under the same pay system, or to a position with a lower representative rate of basic pay when the old and new positions are under different pay systems.

Civil Service Register—A list of eligible applicants compiled in order of their relative standing for referral to federal jobs, after competitive civil service examination.

Civilian Career Brief—A computer product display of an employee's personnel data including overall performance rating, appraisal factor ratings, awards, training, work experience history, and similar data. The selecting official will normally receive a career brief for each employees whose name appears on a referral certificate.

Civilian Performance and Promotion Appraisal Performance Rating—A validated 9-element weighted rating system (contained on AF Form 860A Civilian Rating of Record) used for competitive promotion and placement purposes.

Civilian Rating of Record—The performance rating prepared at the end of an appraisal period for performance of agency-assigned duties over entire period and the assignment of summary level within a pattern.

Cooperative Education Program (COOP)—Program under which a student alternates periods of education and federal employment under terms of an agreement between his/her school and a Government agency or individual installation.

Core Personnel Document—A single document which integrates the position description; performance work plan; knowledge, skills, and abilities (KSAs) for recruitment; and basic training competencies for a position.

Defense Civilian Personnel Data System (DCPDS)—An automated personnel data system for civilian employees that captures and stores key position, work history, and other vital information needed to support civilian personnel management.

Developmental Opportunity Program (DOP)—Air Force career enhancing program with objectives for providing means by which participants' capabilities are increased to their fullest extent; opportunity to enter bridge or career positions through on-the-job or formal training; and increase morale.

Direct Hire Authority—The authority to employ streamlined hiring procedures where active recruitment and public notice fails to attract a sufficient number of qualified candidates to fill a vacant position.

Equal Employment Opportunity (EEO)—The right of all employees and applicants for employment to be recruited, selected, work and advance on the basis of merit, ability and potential, free from social, personal, or institutional barriers of prejudice and discrimination.

Equal Employment Opportunity Commission (EEOC)—The Federal agency which inteprets employment discrimination laws and oversees the federal sector employment discrimination program to ensure equal opportunity within the Federal government and in the development and implementation of Federal agency AEPPs.

Excepted Service—Positions in the federal civil service not subject to the appointment requirements of the competitive service. Exceptions to the normal, competitive requirements are authorized by law, executive order or regulation.

Federal Equal Opportunity Recruitment Program (FEORP)—A federal recruitment program targeting minority, female, and disabled individuals to establish diverse pools of applicants for referral to selecting officials. Within the AF, FEORP plan requirements are incorporated into the AEPPs.

Federal Wage System (FWS)—Wage system covering employees in trades, crafts, or labor occupations, whose pay is fixed and adjusted periodically in accordance with prevailing rates.

Grade Retention—Under circumstances outlined in 5 CFR 536.103, employees are entitled to retain their higher grade when moved to lower-graded positions. The specific conditions and circumstances for grade retention entitlement are outlined in AFI 36-802, *Pay Setting*.

Incentive Awards—Awards based on predetermined criteria such as productivity standards, performance goals, measurement systems, award formulas, or payout schedules.

Interagency Placement Program (IPP)—Priority placement program administered by OPM.

Job Analysis/Promotion Plan—A detailed statement of work behaviors or activities (such as, duties and tasks) and worker characteristics needed for successful job performance. Valid job-related evaluation criteria that extend beyond the minimum requirements specified by the qualification standard must be used to permit meaningful ranking of eligible candidates to include appropriate best qualified factors; selective placement factors (if used); and applicable ranking factors.

Job Analysis/Promotion Plan Template—The documentation tool in CPDSS of the Job Analysis/Promotion Plan.

Job Qualification System for Trades and Labor Occupations, Handbook X-118C.—The official manual issued by OPM for positions in trades and labor ("blue collar") occupations.

Knowledge—Information applied directly to the performance of a function.

Leave Without Pay (LWOP)—Temporary nonpay status and an authorized absence from duty granted upon the employee's request, or when the employee has insufficient annual or sick leave, or compensatory time available to cover an approved absence. The employee does not have to exhaust annual leave before requesting LWOP.

Merit System Principles—Statutory federal employment principles as contained in Title 5, Section 2301, *Merit Systems Principles,* United States Code (U.S.C.)

Nonappropriated Fund (NAF)—Persons paid from nonappropriated funds of instumentalities of the United States. Generally, these employees work in organizations that are responsible for the enhancement of the quality of life for personnel of the Armed Forces.

Official Personnel Folder (OPF)—The official repository of employment records and documents affecting personnel action during an employee's federal civilian service.

Operating Manual For Qualifications Standards for General Schedule Positions—The official manual issued by OPM which documents qualification requirements for positions in the General Schedule.

PALACE Team—A group of functional specialists, assigned to the Air Force Civilian Career Management Directorate (DPK), responsible for administering a career program.

Pay Retention—Pay retention is provided to employees when the grade retention period ends or under other circumstances when an employee's pay would otherwise be reduced. Specific provisions of pay retention entitlement are contained in AFI 36-802, *Pay Setting,* 26 April 1994.

Pay System—Payment under such parameters as the General Schedule, Federal Wage System (FWS), etc.

Priority Placement Program (PPP)—A DoD-wide placement system used to promote the stability of employment for civilian employees affected by changing manpower requirements and to provide maximum opportunity for placement in other DoD positions. Seeks to minimize the adverse effects on employees caused by actions required for the effective management of the DoD, such as RIF, base closures, consolidations, realignments, position classification decisions, overseas rotations and transfers of function.

Program S—The DoD Military Spouse Preference Program (Program S) is the only means by which eligible spouses will receive preference for competitive service positions.

Promotion—The change of an employee to a position at a higher grade level when both the old and new positions are under the General Schedule or under the same wage grade schedule, or to a position with a higher rate of basic pay when both the old and new positions are under different pay systems.

Promotion Registers—Master listings in rank order, from which competitive referrals are made. Normally, these registers are updated on a regular and recurring basis.

Qualified Candidates—Those who meet established qualification requirements for the position to be filled.

Ranking Factors—Job-related evaluation criteria that go beyond the minimum requirements specified by the basic qualification standard used to permit meaningful ranking of eligible candidates. Factors to be considered include KSAs and personal characteristics that are the best predictors of future job success.

Reassignment—The movement of an employee from one position to another at the same grade level.

Reduction-in-Force (RIF)—A personnel action that may be required due to lack of work or funds, changes resulting from reorganization, downward reclassification of a position, or the need to make room for an employee with reemployment /restoration rights. Involves releasing an

employee from his/her competitive level but does not necessarily result in separation or downgrading.

Reemployment Priority List (RPL)—Career and career-conditional employees, separated by RIF who are identified, in priority order, for reemployment to competitive positions in the agency within the commuting area where the separations occurred.

Restoration Rights—Employees who enter military service or sustain a compensable job-related injury or disability; entitled to be restored to the same or higher employment status held prior to their absence.

Selective Placement Factors—KSAs or other requirements essential for satisfactory performance that represent an addition to the basic standard for a position.

Schedule A—Excepted service position other than confidential or policy-determining, for which it is not practical to examine.

Schedule B—Excepted service position other than confidential or policy-determining, for which it is not practical to hold a competitive examination.

Screening Factors—Initial position requirements against which competitors are evaluated; normally, these are mandatory requirements, the absence of which the candidate cannot successfully perform in the position.

Shortage Category Position—Position pre-identified as "hard-to-fill" due to unique circumstances such as remoteness of the area or location involved; undesirability of working conditions; or any other appropriate factor that impedes management's ability to attract well-qualified candidates for placement consideration.

Skill—Proficiency in the physical, verbal, or virtual manipulation of data or tasks.

Specialized Examining Unit (SEU)—The delegation of Title 5, USC, Chapter 11, Section 1104, authorizing recruiting, examining, establishing competitor inventory, and issuing certificates of eligibles for all Air Reserve Technicians positions in the General Schedule and Wage Grade series nationwide.

STAIRS—The DoD Standard Automated Inventory and Referral System, which encompasses automated search and referral processes for staffing civilian positions.

STAIRS Search Criteria—A process used to identify and rank "best qualified" candidates.

Student Career Experience Program (SCEP)—Student Career Experience Program students are hired to work in their academic field. Students appointed under this authority may be non-competitively converted to a career or career-conditional appointment within 120 days of completion of their academic program. Tuition assistance is available for all or part of the training expenses. The student may be required to sign a written training agreement to continue employment in the Air Force for a specified period of time before accepting tuition assistance.

Subject Matter Expert (SME)—Individual(s) knowledgeable in the detailed requirements of a job; usually the supervisor of the work being accomplished in the position or past supervisor or past incumbent(s) of the position(s) or very similar position(s).

Transfer—Movement of an employee between agencies without a break in service.

Attachment 1 (USAFE)

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References
AFMAN 33-363, *Management of Records,* 1 March 2008

Prescribed Forms
USAFE 16, *Local Applicant Questionnaire,* 1September 1995

Abbreviations and Acronyms

IMT--Information Management Tool

NATO--North Atlantic Treaty Organization

SOFA--Status of Forces Agreement

US--United States

USAFE--United States Air Forces in Europe